PART THREE Defending the Charters

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Immigrants to America brought with them a long tradition of chartered rights. In determining the limits of political authority, they looked to a rich history, encapsulated in several important documents, of social and political custom. From Magna Charta, or the "Great Charter," of 1215 through the English Bill of Rights, Englishmen had won successive victories in their battles (sometimes literally fought with fire and sword) to limit their king's ability to imprison subjects indefinitely without trial, try subjects in arbitrary ways, quarter troops in subjects' homes, and otherwise do as he wished with those whom he ruled.

The colonists ruled themselves under their own charters, or grants from the king. These charters gave them certain rights and reserved others for the king, his ministers, or other governing persons or bodies (for example, a proprietary or royal governor). Americans believed that these charters established their rights, as English subjects, to all the other rights derived from Magna Charta. The king and parliament of Great Britain did not accept this view. The result was a long history of tension between colonials and the government in the mother country. It was during this time of tension that Americans developed a distinctive reading of their history and their rights as English subjects and human beings.

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Magna Charta

1215

Magna Charta was the result of victory on the battlefield by barons (local lords) opposed to England's King John. Negotiated in the days following the battle at Runnemede, it was no theoretical document. It lists numerous specific, customary rights that the barons asserted they had held from time immemorial, but that John had violated. Among these were the rights to be taxed only at certain times and under certain conditions, and to be tried by a jury of one's peers. Following the preamble, Magna Charta begins by outlining the rights of the church. John had fought, as had many kings before him, to reserve for himself the right to appoint bishops. The Catholic Church and other opponents of unlimited royal power responded that the servants of God must be independent from service to the temporal authority.

Magna Charta

The great charter of King John, granted June 15, A.D. 1215. John, by the Grace of God, King of England, Lord of Ireland, Duke of Normandy, Aquitaine, and Count of Anjou, to his Archbishops, Bishops, Abbots, Earls, Barons, Justiciaries, Foresters, Sheriffs, Governors, Officers, and to all Bailiffs, and his faithful subjects, greeting. Know ye, that we, in the presence of God, and for the salvation of our soul, and the souls of all our ancestors and heirs, and unto the honour of God and the advancement of Holy Church, and amendment of our Realm, by advice of our venerable Fathers, Stephen, Archbishop of Canterbury, Primate of all England and Cardinal of the Holy Roman Church; Henry, Archbishop of Dublin; William, of London; Peter, of Winchester; Jocelin, of Bath and Glastonbury; Hugh, of Lincoln; Walter, of Worcester; William, of Coventry; Benedict, of Rochester—Bishops: of Master Pandulph, Sub-Deacon and Familiar of our Lord the Pope; Brother Aymeric, Master of the Knights-Templar in England; and the noble Persons, William Marescall, Earl of Pembroke; William, Earl of Salisbury; William, Earl of Warren; William, Earl of Arundel; Alan de Galloway, Constable of Scotland; Warin FitzGerald, Peter FitzHerbert, and Hubert de Burgh, Seneschal of Poitou; Hugh de Neville, Matthew FitzHerbert, Thomas Basset, Alan Basset, Philip of Albiney, Robert de Roppell, John Mareschal, John Fitz-Hugh, and others, our liegemen, have, in the first place, granted to God, and by this our present Charter confirmed, for us and our heirs for ever:

1. *Rights of the church.* That the Church of England shall be free, and have her whole rights, and her liberties inviolable; and we will have them so observed that it may appear thence that the freedom of elections, which is reckoned chief and indispensable to the English Church, and which we granted and confirmed by our Charter, and obtained the confirmation of the same from our Lord and Pope Innocent III, before the discord between us and our barons, was granted of mere free will; which Charter we shall observe, and we do will it to be faithfully observed by our heirs for ever.

2. *Grant of liberty to freemen.* We also have granted to all the freemen of our kingdom, for us and for our heirs for ever, all the underwritten liberties, to be had and holden by them and their heirs, of us and our heirs for ever: If any of our earls, or barons, or others, who hold of us in chief by military service, shall die, and at the time of his death his heir shall be of full age, and owe a relief, he shall have his inheritance by the ancient relief—that is to say, the heir or heirs of an earl, for a whole earldom, by a hundred pounds; the heir or heirs of a baron, for a whole barony, by a hundred pounds; their heir or heirs of a knight, for a whole knight's fee, by a hundred shillings at most; and whoever oweth less shall give less according to the ancient custom of fees. . . .

12. *No tax (scutage) except by the general council.* No scutage or aid shall be imposed in our kingdom, unless by the general council of our kingdom; except for ransoming our person, making our eldest son a knight, and once for marrying our eldest daughter; and for these there shall be paid no more than a reasonable aid. In like manner it shall be concerning the aids of the City of London.

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13. *Liberties of London and other towns.* And the City of London shall have all its ancient liberties and free customs, as well by land as by water; furthermore, we will and grant that all other cities and boroughs, and towns and ports, shall have all their liberties and free customs.

14. *General council shall consent to assessment of taxes.* And for holding the general council of the kingdom concerning the assessment of aids, except in the three cases aforesaid, and for the assessing of scutages, we shall cause to be summoned the archbishops, bishops, abbots, earls, and greater barons of the realm, singly by our letters, and furthermore, we shall cause to be summoned generally, by our sheriffs and bailiffs, all others who hold of us in chief, for a certain day, that is to say, forty days before their meeting at least, and to a certain place; and in all letters of such summons we will declare the cause of such summons, and, summons being thus made the business shall proceed on the day appointed, according to the advice of such as shall be present, although all that were summoned come not. . . .

17. *Courts shall administer justice in a fixed place.* Common pleas shall not follow our court, but shall be holden in some place certain.

18. *Land disputes shall be tried in their proper counties.* Trials upon the Writs of Novel Disseisin, and of Mort d'ancestor, and of Darrein Presentment, shall not be taken but in their proper counties, and after this manner: We, or if we should be out of the realm, our chief justiciary, will send two justiciaries through every county four times a year, who, with four knights of each county, chosen by the county, shall hold the said assizes in the county, on the day, and at the place appointed.

19. *Keeping the assize courts open.* And if any matters cannot be determined on the day appointed for holding the assizes in each county, so many of the knights and freeholders as have been at the assizes aforesaid shall stay to decide them as is necessary, according as there is more or less business.

20. *Fines against freemen to be measured by the offense.* A freeman shall not be amerced for a small offence, but only according to the degree of the offence; and for a great crime according to the heinousness of it, saving to him his contentment; and after the same manner a merchant, saving to him his merchandise. And a villein shall be amerced after the same manner, saving to him his wainage, if he falls under our mercy; and none of the aforesaid amerciaments shall be assessed but by the oath of honest men in the neighbourhood.

21. *Same for nobles.* Earls and barons shall not be amerced but by their peers, and after the degree of the offence.

22. *Same for clergymen.* No ecclesiastical person shall be amerced for his tenement, but according to the proportion of the others aforesaid, and not according to the value of his ecclesiastical benefice.

23. Neither a town nor any tenant shall be distrained to make bridges or embankments, unless that anciently and of right they are bound to do it.

24. No sheriff, constable, coroner, or other of our bailiffs, shall hold "Pleas of the Crown."

25. All counties, hundreds, wapentakes, and trethings, shall stand at the old rents, without any increase, except in our demesne manors.

26. If any one holding of us a lay fee die, and the sheriff, or our bailiffs, show our letters patent of summons for debt which the dead man did owe to us, it shall be lawful for the sheriff or our bailiff to attach and register the chattels of the dead, found upon his lay fee, to the amount of the debt, by the view of lawful men, so as nothing be removed until our whole clear debt be paid; and the rest shall be left to the executors to fulfil the testament of the dead; and if there be nothing due from him to us, all the chattels shall go to the use of the dead, saving to his wife and children their reasonable shares.

27. If any freeman shall die intestate, his chattels shall be distributed by the hands of his nearest relations and friends, by view of the Church, saving to every one his debts which the deceased owed to him.

28. *Compensation for the taking of private property.* No constable or bailiff of ours shall take corn or other chattels of any man unless he presently give him money for it, or hath respite of payment by the good-will of the seller.

29. No constable shall distrain any knight to give money for castle-guard, if he himself will do it in his person, or by another able man, in case he cannot do it through any reasonable cause. And if we have carried or sent him into the army, he shall be free from such guard for the time he shall be in the army by our command.

30. *No taking of horses or carts without consent.* No sher-

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iff or bailiff of ours, or any other, shall take horses or carts of any freeman for carriage, without the assent of the said freeman.

31. *No taking of trees for timber without consent.* Neither shall we nor our bailiffs take any man's timber for our castles or other uses, unless by the consent of the owner of the timber.

32. We will retain the lands of those convicted of felony only one year and a day, and then they shall be delivered to the lord of the fee.

33. All kydells (wears) for the time to come shall be put down in the rivers of Thames and Medway, and throughout all England, except upon the seacoast.

34. The writ which is called *proecipe,* for the future, shall not be made out to any one, of any tenement, whereby a freeman may lose his court.

35. *Uniform weights and measures.* There shall be one measure of wine and one of ale through our whole realm; and one measure of corn, that is to say, the London quarter; and one breadth of dyed cloth, and russets, and haberjects, that is to say, two ells within the lists; and it shall be of weights as it is of measures.

36. *Nothing from henceforth shall be given or taken for a writ of inquisition of life or limb, but it shall be granted freely, and not denied.*

37. If any do hold of us by fee-farm, or by socage, or by burgage, and he hold also lands of any other by knight's service, we will have the custody of the heir or land, which is holden of another man's fee by reason of that fee-farm, socage, or burgage; neither will we have the custody of the fee-farm, or socage, or burgage, unless knight's service was due to us out of the same fee-farm. We will not have the custody of an heir, nor of any land which he holds of another by knight's service, by reason of any petty serjeanty by which he holds of us, by the service of paying a knife, an arrow, or the like.

38. No bailiff from henceforth shall put any man to his law upon his own bare saying, without credible witnesses to prove it.

39. *Guarantee of judgment by one's peers and of proceedings according to the "law of the land."* No freeman shall be taken or imprisoned, or disseised, or outlawed, or banished, or any ways destroyed, nor will we pass upon him, nor will we send upon him, unless by the lawful judgment of his peers, or by the law of the land.

40. *Guarantee of equal justice (equality before the law).* We will sell to no man, we will not deny or delay to any man, either justice or right.

41. *Freedom of movement for merchants.* All merchants shall have safe and secure conduct, to go out of, and to come into England, and to stay there and to pass as well by land as by water, for buying and selling by the ancient and allowed customs, without any unjust tolls; except in time of war, or when they are of any nation at war with us. And if there be found any such in our land, in the beginning of the war, they shall be attached, without damage to their bodies or goods, until it be known unto us, or our chief justiciary, how our merchants be treated in the nation at war with us; and if ours be safe there, the others shall be safe in our dominions.

42. *Freedom to leave and reenter the kingdom.* It shall be lawful, for the time to come, for any one to go out of our kingdom, and return safely and securely by land or by water, saving his allegiance to us; unless in time of war, by some short space, for the common benefit of the realm, except prisoners and outlaws, according to the law of the land, and people in war with us, and merchants who shall be treated as is above mentioned.

43. If any man hold of any escheat as of the honour of Wallingford, Nottingham, Boulogne, Lancaster, or of other escheats which be in our hands, and are baronies, and die, his heir shall give no other relief, and perform no other service to us than he would to the baron, if it were in the baron's hand; and we will hold it after the same manner as the baron held it.

44. Those men who dwell without the forest from henceforth shall not come before our justiciaries of the forest, upon common summons, but such as are impleaded, or as sureties for any that are attached for something concerning the forest.

45. *Appointment of those who know the law.* We will not make any justices, constables, sheriffs, or bailiffs, but of such as know the law of the realm and mean duly to observe it.

46. All barons who have founded abbeys, which they hold by charter from the kings of England, or by ancient tenure, shall have the keeping of them, when vacant, as they ought to have.

47. All forests that have been made forests in our time shall forthwith be disforested; and the same shall be done with the water-banks that have been fenced in by us in our time.

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48. All evil customs concerning forests, warrens, foresters, and warreners, sheriffs and their officers, water-banks and their keeper, shall forthwith be inquired into in each county, by twelve sworn knights of the same county chosen by creditable persons of the same county; and within forty days after the said inquest be utterly abolished, so as never to be restored: so as we are first acquainted therewith, or our justiciary, if we should not be in England.

49. We will immediately give up all hostages and charters delivered unto us by our English subjects, as securities for their keeping the peace, and yielding us faithful service.

50. We will entirely remove from their bailiwicks the relations of Gerard de Atheyes, so that for the future they shall have no bailiwick in England; we will also remove from their bailiwicks the relations of Gerard de Atheyes, so that for the future they shall have no bailiwick in England; we will also remove Engelard de Cygony, Andrew, Peter, and Gyon, from the Chancery; Gyon de Cygony, Geoffrey de Martyn, and his brothers; Philip Mark, and his brothers, and his nephew, Geoffrey, and their whole retinue.

51. As soon as peace is restored, we will send out of the kingdom all foreign knights, cross-bowmen, and stipendiaries, who are come with horses and arms to the molestation of our people.

52. If any one has been dispossessed or deprived by us, without the lawful judgment of his peers, of his lands, castles, liberties, or rights, we will forthwith restore them to him; and if any dispute arise upon this head, let the matter be decided by the five-and-twenty barons hereafter mentioned, for the preservation of the peace. And for all those things of which any person has, without the lawful judgment of his peers, been dispossessed or deprived, either by our father King Henry, or our brother King Richard, and which we have in our hands, or are possessed by others, and we are bound to warrant and make good, we shall have a respite till the term usually allowed the crusaders; excepting those things about which there is a plea depending, or whereof an inquest hath been made, by our order before we undertook the crusade; but as soon as we return from our expedition, or if perchance we tarry at home and do not make our expedition, we will immediately cause full justice to be administered therein.

53. The same respite we shall have, and in the same manner, about administering justice, disafforesting or letting continue the forests, which Henry our father, and our brother Richard, have afforested; and the same concerning the wardship of the lands which are in another's fee, but the wardship of which we have hitherto had, by reason of a fee held of us by knight's service; and for the abbeys founded in other fee than our own, in which the lord of the fee says he has a right; and when we return from our expedition, or if we tarry at home, and do not make our expedition, we will immediately do full justice to all the complainants in this behalf.

54. No man shall be taken or imprisoned upon the appeal of a woman, for the death of any other than her husband.

55. All unjust and illegal fines made by us, and all amerciaments imposed unjustly and contrary to the law of the land, shall be entirely given up, or else be left to the decision of the five-and-twenty barons hereafter mentioned for the preservation of the peace, or of the major part of them, together with the foresaid Stephen, Archbishop of Canterbury, if he can be present, and others whom he shall think fit to invite; and if he cannot be present, the business shall notwithstanding go on without him; but so that if one or more of the aforesaid five-and-twenty barons be plaintiffs in the same cause, they shall be set aside as to what concerns this particular affair, and others be chosen in their room, out of the said five-and-twenty, and sworn by the rest to decide the matter.

56. If we have disseised or dispossessed the Welsh of any lands, liberties, or other things, without the legal judgment of their peers, either in England or in Wales, they shall be immediately restored to them; and if any dispute arise upon this head, the matter shall be determined in the Marches by the judgment of their peers; for tenements in England according to the law of England, for tenements in Wales according to the law of Wales, for tenements of the Marches according to the law of the Marches: the same shall the Welsh do to us and our subjects.

57. As for all those things of which a Welshman hath, without the lawful judgment of his peers, been disseised or deprived of by King Henry our father, or our brother King Richard, and which we either have in our hands or others are possessed of, and we are obliged to warrant it, we shall have a respite till the time generally allowed the crusaders; excepting those things about which a suit is depending, or whereof an inquest has been made by our order, before we undertook the crusade: but when we return, or if we stay at home without performing our expedition, we will im-

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mediately do them full justice, according to the laws of the Welsh and of the parts before mentioned.

58. We will without delay dismiss the son of Llewellin, and all the Welsh hostages, and release them from the engagements they have entered into with us for the preservation of the peace.

59. We will treat with Alexander, King of Scots, concerning the restoring of his sisters and hostages, and his right and liberties, in the same form and manner as we shall do to the rest of our barons of England; unless by the charters which we have from his father, William, late King of Scots, it ought to be otherwise; and this shall be left to the determination of his peers in our court.

60. *Liberties to be granted to all subjects.* All the foresaid customs and liberties, which we have granted to be holden in our kingdom, as much as it belongs to us, all people of our kingdom, as well clergy as laity, shall observe, as far as they are concerned, towards their dependents.

61. *Oath to observe rights of the church and the people.* And whereas, for the honour of God and the amendment of our kingdom, and for the better quieting the discord that has arisen between us and our barons, we have granted all these things aforesaid; willing to render them firm and lasting, we do give and grant our subjects the underwritten security, namely, that the barons may choose five-and-twenty barons of the kingdom, whom they think convenient; who shall take care, with all their might, to hold and observe, and cause to be observed, the peace and liberties we have granted them, and by this our present Charter confirmed in this manner; that is to say, that if we, our justiciary, our bailiffs, or any of our officers, shall in any circumstance have failed in the performance of them towards any person, or shall have broken through any of these articles of peace and security, and the offence be notified to four barons chosen out of the five-and-twenty before mentioned, the said four barons shall repair to us, or our justiciary, if we are out of the realm, and, laying open the grievance, shall petition to have it redressed without delay: and if it be not redressed by us, or if we should chance to be out of the realm, if it should not be redressed by our justiciary within forty days, reckoning from the time it been notified to us, or to our justiciary (if we should be out of the realm), the four barons aforesaid shall lay the cause before the rest of the five-and-twenty barons; and the said five-and-twenty barons, together with the community of the whole kingdom, shall distrain and distress us in all the ways in which they shall be able, by seizing our castles, lands, possessions, and in any other manner they can, till the grievance is redressed, according to their pleasure; saving harmless our own person, and the persons of our Queen and children; and when it is redressed, they shall behave to us as before. And any person whatsoever in the kingdom may swear that he will obey the orders of the five-and-twenty barons aforesaid in the execution of the premises, and will distress us, jointly with them, to the utmost of his power; and we give public and free liberty to any one that shall please to swear to this, and never will hinder any person from taking the same oath.

62. As for all those of our subjects who will not, of their own accord, swear to join the five-and-twenty barons in distraining and distressing us, we will issue orders to make them take the same oath as aforesaid. And if any one of the five-and-twenty barons dies, or goes out of the kingdom, or is hindered any other way from carrying the things aforesaid into execution, the rest of the said five-and-twenty barons may choose another in his room, at their discretion, who shall be sworn in like manner as the rest. In all things that are committed to the execution of these five-and-twenty barons, if, when they are all assembled about any matter, and some of them, when summoned, will not or cannot come, whatever is agreed upon, or enjoined, by the major part of those that are present shall be reputed as firm and valid as if all the five-and-twenty had given their consent; and the aforesaid five-and-twenty shall swear that all the premises they shall faithfully observe, and cause with all their power to be observed. And we will procure nothing from any one, by ourselves nor by another, whereby any of these concessions and liberties may be revoked or lessened; and if any such thing shall have been obtained, let it be null and void; neither will we ever make use of it either by ourselves or any other. And all the ill-will, indignations, and rancours that have arisen between us and our subjects, of the clergy and laity, from the first breaking out of the dissensions between us, we do fully remit and forgive: moreover, all trespasses occasioned by the said dissensions, from Easter in the sixteenth year of our reign till the restoration of peace and tranquility, we hereby entirely remit to all, both clergy and laity, and as far as in us lies do fully forgive. We have, moreover, caused to be made for them the letters patent testimonial of Stephen, Lord Arch-

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bishop of Canterbury, Henry, Lord Archbishop of Dublin, and the bishops aforesaid, as also of Master Pandulph, for the security and concessions aforesaid.

63. Wherefore we will and firmly enjoin, that the Church of England be free, and that all men in our kingdom have and hold all the aforesaid liberties, rights, and concessions, truly and peaceably, freely and quietly, fully and wholly to themselves and their heirs, of us and our heirs, in all things and places, for ever, as is aforesaid. It is also sworn, as well on our part as on the part of the barons, that all the things aforesaid shall be observed in good faith, and without evil subtilty. Given under our hand, in the presence of the witnesses above named, and many others, in the meadow called Runingmede, between Windsor and Staines, the 15th day of June, in the 17th year of the reign.

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Petition of Right

1628

The unpopular foreign wars waged by England's Charles I had led his Parliament to refuse to grant him increased tax monies. Charles had responded by forcing wealthy subjects to lend money to his government, quartering his troops in private homes, and arbitrarily arresting and imprisoning important figures who publicly opposed his policies. In response, Parliament, led by the famous lawyer Sir Edward Coke, drafted and sent to the king the Petition of Right. In this document, Parliament sets forth its view that long-standing law and custom established its right to consent to all taxes, and the right of the people to be free from arbitrary imprisonment, the forced quartering of soldiers, and martial law during time of peace. In return for Charles's assent to this Petition, Parliament granted him increased subsidies.

Petition of Right

The Petition exhibited to his Majesty by the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, concerning divers Rights and Liberties of the Subjects, with the King's Majesty's royal answer thereunto in full Parliament

To the King's Most Excellent Majesty,

Humbly show unto our Sovereign Lord the King, the Lords Spiritual and Temporal, and Commons in Parliament assembled, that whereas it is declared and enacted by a statute made in the time of the reign of King Edward I., commonly called *Statutum de Tallagio non concedendo,* that no tallage or aid shall be laid or levied by the king or his heirs in this realm, without the good will and assent of the archbishops, bishops, earls, barons, knights, burgesses, and other the freemen of the commonalty of this realm; and by authority of Parliament holden in the five-and-twentieth year of the reign of King Edward III., it is declared and enacted, that from thenceforth no person shall be compelled to make any loans to the king against his will, because such loans were against reason and the franchise of the land; and by other laws of this realm it is provided, that none should be charged by any charge or imposition, called a benevolence, nor by such like charge; by which the statutes before mentioned, and other the good laws and statutes of this realm, your subjects have inherited this freedom, that they should not be compelled to contribute to any tax, tallage, aid, or other like charge not set by common consent, in Parliament:

II. Yet nevertheless of late divers commissions directed to sundry commissioners in several counties, with instructions, have issued; by means whereof your people have been in divers places assembled, and required to lend certain sums of money unto your Majesty, and many of them, upon their refusal so to do, have had an oath administered unto them not warrantable by the laws or statutes of this realm, and have been constrained to become bound and make appearance and give utterance before your Privy Council, and in other places, and others of them have been therefore imprisoned, confined, and sundry other ways molested and disquieted; and divers other charges have been laid and levied upon your people in several counties by lord lieutenants, deputy lieutenants, commissioners for musters, justices of peace and others, by command or direction from your Majesty or your Privy Council, against the laws and free customs of the realm.

III. And whereas also by the statute called "The Great Charter of the liberties of England," it is declared and enacted that no freeman may be taken or imprisoned or be disseised of his freeholds or liberties, or his free customs, or be outlawed or exiled, or in any manner destroyed, but by the lawful judgment of his peers, or by the law of the land.

IV. And in the eight-and-twentieth year of the reign of King Edward III., it was declared and enacted by authority of Parliament, that no man, of what estate or condition that he be, should be put out of his lands or tenements, nor taken, nor imprisoned, nor disherited, nor put to death without being brought to answer by due process of law.

V. Nevertheless, against the tenor of the said statutes, and other the good laws and statutes of your realm to that

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end provided, divers of your subjects have of late been imprisoned without any cause showed; and when for their deliverance they were brought before your justices, by your Majesty's writs of *habeas corpus,* there to undergo and receive as the court should order, and their keepers commanded to certify the causes of their detainer, no cause was certified, but that they were detained by your Majesty's special command, signified by the lords of your Privy Council, and yet were returned back to several prisons, without being charged with anything to which they might make answer according to the law.

VI. And whereas of late great companies of soldiers and mariners have been dispersed into divers counties of the realm, and the inhabitants against their wills have been compelled to receive them into their houses, and there to suffer them to sojourn against the laws and customs of this realm, and to the great grievance and vexation of the people.

VII. And whereas also by authority of Parliament, in the five-and-twentieth year of the reign of King Edward III, it is declared and enacted, that no man shall be forejudged of life or limb against the form of the Great Charter and the law of the land; and by the said Great Charter, and other the laws and statutes of this your realm, no man ought to be adjudged to death but by the laws established in this your realm, either by the customs of the same realm or by acts of Parliament: and whereas no offender of what kind soever is exempted from the proceedings to be used, and punishments to be inflicted by the laws and statutes of this your realm; nevertheless of late time divers commissions under your Majesty's great seal have issued forth, by which certain persons have been assigned and appointed commissioners with power and authority to proceed within the land, according to the justice of martial law, against such soldiers or mariners, or other dissolute persons joining with them, as should commit any murder, robbery, felony, mutiny, or other outrage or misdemeanour whatsoever, and by such summary course and order as is agreeable to martial law, and as is used in armies in time of war, to proceed to the trial and condemnation of such offenders, and them to cause to be executed and put to death according to the law martial.

VIII. By pretext whereof some of your Majesty's subjects have been by some of the said commissioners put to death, when and where, if by the laws and statutes of the land they had deserved death, by the same laws and statutes also they might, and by no other ought to have been, judged and executed.

IX. And also sundry grievous offenders, by colour thereof claiming an exemption, have escaped the punishments due to them by the laws and statutes of this your realm, by reason that divers of your officers and ministers of justice have unjustly refused or forborne to proceed against such offenders according to the same laws and statutes, upon pretence that the said offenders were punishable only by martial law, and by authority of such commissions as aforesaid; which commissioners, and all other of like nature, are wholly and directly contrary to the said laws and statutes of this your realm.

X. They do therefore humbly pray your most excellent Majesty, that no man hereafter be compelled to make or yield any gift, loan, benevolence, tax, or such like charge, without common consent by act of Parliament; and that none be called to make, answer, or take such oath, or to give attendance, or be confined, or otherwise molested or disquieted concerning the same or for refusal thereof; and that no freeman, in any such manner as is before mentioned, be imprisoned or detained; and that your Majesty would be pleased to remove the said soldiers and mariners, and that your people may not be so burdened in time to come; and that the foresaid commissions, for proceeding by martial law, may be revoked and annulled; and that hereafter no commissions of like nature may issue forth to any person or persons whatsoever to be executed as aforesaid, lest by colour of them any of your Majesty's subjects be destroyed or put to death contrary to the laws and franchise of the land.

XI. All which they most humbly pray of your most excellent Majesty as their rights and liberties, according to the laws and statutes of this realm; and that your Majesty would also vouchsafe to declare, that the awards, doings, and proceedings, to the prejudice of your people in any of the premises, shall not be drawn hereafter into consequence or example; and that your Majesty would be also graciously pleased, for the further comfort and safety of your people, to declare your royal will and pleasure, that in the things aforesaid all your officers and ministers shall serve you according to the laws and statutes of this realm, as they tender the honour of your Majesty, and the prosperity of this kingdom.

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[Which Petition being read the 2nd of June, 1628, the King's answer was thus delivered unto it.

The King willeth that right be done according to the laws and customs of the realm; and that the statutes be put in due execution, that his subjects may have no cause to complain of any wrong or oppressions, contrary to their just rights and liberties, to the preservation whereof he holds himself as well obliged as of his prerogative.

This form was unusual and was therefore thought to be an evasion; therefore on June 7 the King gave a second answer in the formula usual for approving bills: *Soit droit fait comme il est désire.*]

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An Account of the Late Revolution in New England and Boston Declaration of Grievances

NATHANAEL BYFIELD

April 18, 1689

James II was the younger son of the beheaded Charles I. In 1685, James succeeded his brother, Charles II, who had been restored to the throne in 1660. Unlike his brother, James did not believe it necessary to limit his claims to unchecked power in the light of parliamentary power and authority. In England, James set about legislating without parliamentary consent and withdrawing the charters by which townships traditionally had governed their own affairs. In America, he revoked colonial charters in an attempt to consolidate royal power and administration. Throughout the empire, James's opponents were subjected to arbitrary imprisonment. In England, the result was the Glorious Revolution of 1688, which brought William of Orange and his army to London, causing James to flee the country and his throne. Unrest also erupted in America, bringing down numerous governments imposed on the colonists from London. Byfield, an English merchant, provides a narrative of the insurrection in Boston, which was part of a more general revolt throughout the colonies, as well as a copy of the Declaration of Boston's prominent citizens, which set forth their reasons for revolt.

An Account of the Late Revolution In New-England

Written by Mr. Nathanael Byfield,
to his Friends, &c.

Gentlemen,

Here being an opportunity of sending for *London,* by a Vessel that loaded at *Long-Island,* and for want of a Wind put in here; and not knowing that there will be the like from this Country suddenly, I am willing to give you some brief Account of the most remarkable things that have happened here within this Fortnight last past; concluding that till about that time, you will have received *per Carter,* a full Account of the management of Affairs here. Upon the *Eighteenth* Instant, about Eight of the Clock in the Morning, in *Boston,* it was reported at the *South* end of the Town, That at the *North* end they were all in Arms; and the like Report was at the *North* end, respecting the *South* end: Whereupon Captain *John George* was immediately seized, and about nine of the clock the Drums beat thorough the Town; and an Ensign was set up upon the Beacon. Then Mr. *Bradstreet,* Mr. *Dantforth,* Major *Richards,* Dr. *Cooke,* and Mr. *Addington* & *c.* were brought to the Council-house by a Company of Soldiers under the Command of Captain *Hill.* The mean while the People in Arms, did take up and put in to Gaol, Justice *Bullivant,* Justice *Foxcroft,* Mr. *Randolf,* Sheriff *Sherlock,* Captain *Ravenscroft,* Captain *White, Farewel, Broadbent, Crafford, Larkin, Smith,* and many more, as also *Mercey* the then Goal-keeper, and put *Scates* the Bricklayer in his place. About Noon, in the Gallery at the Council-house, was read the Declaration here inclosed. Then a Message was sent to the Fort to Sir *Edmund Andros,* By Mr. *Oliver* and Mr. *Eyres,* signed by the Gentlemen then in the Council-Chamber, (which is here also inclosed); to inform him how unsafe he was like to be if he did not deliver up himself, and Fort and Government forthwith, which he was loath to do. By this time, being about two of the Clock (the Lecture being put by) the Town was generally in Arms, and so many of the Countrey came in, that there was Twenty Companies in *Boston,* besides a great many that appeared at *Charles Town* that could not get over (some say Fifteen Hundred). There then came information to the Soldiers, That a Boat was come from the Frigat that made towards the Fort, which made them haste thither, and come to the Sconce soon after the Boat got thither; and 'tis said that Governor *Andros,* and about half a score Gentlemen, were coming down out of the Fort; but the Boat being seized, wherein were small

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Arms, Hand-Granadoes, and a quantity of Match, the Governour and the rest went in again; whereupon Mr. *John Nelson,* who was at the head of the Soldiers, did demand the Fort and the Governor, who was loath to submit to them; but at length did come down, and was with the Gentlemen that were with him, conveyed to the Council-house, where Mr. *Bradstreet* and the rest of the Gentlemen waited to receive him; to whom Mr. *Stoughton* first spake, telling him, He might thank himself for the present disaster that had befallen him, &*c.* He was then confined for that night to Mr. *John Usher*'s house under strong Guards, and the next day conveyed to the Fort, (where he yet remains, and with him Lieutenant Collonel *Ledget*) which is under the Command of Mr. *John Nelson;* and at the Castle, which is under the Command of Mr. *John Fairweather,* is Mr. *West,* Mr. *Graham,* Mr. *Palmer,* and Captaine *Tryfroye.* At that time Mr. *Dudley* was out upon the Circuit, and was holding a Court at *Southold* on *Long-Island.* And on the 21*st.* Instant he arrived at *Newport,* where he heard the News. The next day Letters came to him, advising him not to come home; he thereupon went over privately to Major *Smith*'s at *Naraganzett,* and advice is this day come hither, that yesterday about a dozen young men, most of their own heads, went thither to demand him; and are gone with him down to *Boston.* We have also advice, that on *Fryday* last towards evening, Sir *Edmond Andross* did attempt to make an escape in Womans Apparel, and pass'd two Guards, and was stopped at the third, being discovered by his Shoes, not having changed them. We are here ready to blame you sometimes, that we have not to this day received advice concerning the great Changes in *England,* and in particular how it is like to fair with us here; who do hope and believe that all these things will work for our Good; and that you will not be wanting to promote the Good of a Country that stands in such need as *New-England* does at this day. The first day of *May,* according to former Usage, is the Election-day at *Road Island;* and many do say they intend their choice there then. I have not farther to trouble you with at present, but recommending you, and all our affairs with you, to the Direction and Blessing of our most Gracious God: I remain

Gentlemen,

Your Most Humble Servant at Command,

Nathanael Byfield

Bristol, *April* 29

1689

Through the Goodness of God, there hath been no Blood shed. Nath. Clark *is in* Plymouth Gaol, *and* John Smith *in* Gaol *here, all waiting for News from* England.

Boston Declaration of Grievances

The Declaration of the Gentlemen, Merchants, and Inhabitants of Boston, and the Country Adjacent. April *18. 1689*

§. I. We have seen more than a decad of Years rolled away, since the *English* World had the Discovery of an horrid *Popish Plot;* wherein the bloody *Devotoes* of *Rome* had in their Design and Prospect no less than the extinction of the *Protestant Religion:* which mighty work they called *the utter subduing of a Pestilent Hersey;* wherein (they said) there never were such hopes of Success since the Death of Queen *Mary,* as now in our days. And we were of all men the most insensible, if we should apprehend a Countrey so remarkable for the true Profession and pure Exercise of the Protestant Religion as *New-England* is, wholly unconcerned in the Infamous Plot. To crush and break a Countrey so entirely and signally made up of *Reformed Churches,* and at length to involve it in the miseries of an utter Extirpation, must needs carry even a Supererogation of merit with it among such as were intoxicated with a Bigotry inspired into them by the great *Scarlet Whore.*

§. II. To get us within the reach of the desolation desired for us, it was no improper thing that we should first have our *Charter* Vacated, and the hedge which kept us from the wild Beasts of the field, effectually broken down. The accomplishment of this was hastened by the unwearied sollicitations, and slanderous accusations of a man, for his *Malice* and *Falshood,* well known unto us all. Our *Charter* was with a most injurious pretence (and scarce that) of Law, condemned before it was possible for us to appear at *Westminster* in the legal defence of it; and without a fair leave to answer for our selves, concerning the Crimes falsly laid to our charge, we were put under a *President* and *Council,* without any liberty for an Assembly, which the other *American Plantations* have, by a Commission from His *Majesty.*

§. III. The Commission was as *Illegal* for the form of it, as the way of obtaining it was *Malicious* and *unreasonable:* yet we made no Resistance thereunto as we could easily

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have done; but chose to give all *Mankind* a Demonstration of our being a people sufficiently dutiful and loyal to our King: and this with yet more Satisfaction, because we took pains to make our selves believe as much as ever we could of the Whedle then offer'd unto us; That his *Magesty's* desire was no other than the happy encrease and advance of these *Provinces* by their more immediate Dependance on the *Crown* of *England.* And we were convinced of it by the courses immediately taken to damp and spoyl our *Trade;* whereof decayes and complaints presently filled all the Country; while in the mean time neither the Honour nor the Treasure of the King was at all advanced by this new Model of our Affairs, but a considerable Charge added unto the Crown.

§. IV. In little more than half a Year we saw this Commission superseded by another, yet more Absolute and Arbitrary, with which Sir *Edmond Andross* arrived as our Governour: who besides his Power, with the Advice and Consent of his Council, to make Laws and raise Taxes as he pleased; had also Authority by himself to Muster and Imploy all Persons residing in the Territory as occasion shall serve; and to transfer such Forces to any English Plantation in *America,* as occasion shall require. And several Companies of Souldiers were now brought from *Europe,* to support what was to be imposed upon us, not without repeated Menaces that some hundreds more were intented for us.

§. V. The Government was no sooner in these Hands, but care was taken to load Preferments principally upon such Men as were strangers to, and haters of the People: and every ones Observation hath noted, what Qualifications recommended a Man to publick Offices and Employments, only here and there a *good Man* was used, where others could not easily be had; the Governour himself, with Assertions now and then falling from him, made us jealous that it would be thought for his Majesties Interest, if this People were removed and another succeeded in their room: And his far-fetch'd Instruments that were growing rich among us, would gravely inform us, that it was not for his Majesties Interest that we should thrive. But of all our oppressors we were chiefly *squeez'd* by a crew of abject Persons, fetched from *New-York,* to be the Tools of the Adversary, standing at our right hand; by these were extraordinary and intollerable Fees extorted from every one upon all occasions, without any Rules but those of their own insatiable Avarice and Beggary; and even the probate of a Will must now cost as many *Pounds* perhaps as it did *Shillings* heretofore; nor could a small Volume contain the other Illegalities done by these *Horse-Leeches* in the two or three Years that they have been sucking of us; and what Laws they made it was as impossible for us to know, as dangerous for us to break; but we shall leave the Men of *Ipswich* and of *Plimouth* (among others) to tell the story of the kindness which has been shown them upon this account. Doubtless a Land so ruled as once *New-England* was, has not without many fears and sighs beheld the wicked walking on every side, and the vilest Men exalted.

§. VI. It was now plainly affirmed, both by some in open Council, and by the same in private converse, that the people in *New-England* were all *Slaves,* and the only difference between them and *Slaves* is their not being bought and sold; and it was a maxim delivered in open Court unto us by one of the Council, *that we must not think the Priviledges of Englishmen would follow us to the end of the World:* Accordingly we have been treated with multiplied contradictions to *Magna Charta,* the rights of which we laid claim unto. Persons who did but peaceably object against the raising of Taxes without an Assembly, have been for it fined, some twenty, some thirty, and others fifty Pounds. Packt and pickt Juries have been very common things among us, when, under a pretended form of Law, the trouble of some honest and worthy Men has been aimed at: but when some of this Gang have been brought upon the Stage, for the most detestable Enormities that ever the Sun beheld, all Men have with Admiration seen what methods have been taken that they might not be treated according to their Crimes. Without a Verdict, yea, without a Jury sometimes have People been fined most unrighteously; and some not of the meanest Quality have been kept in long and close Imprisonment without any the least Information appearing against them, or an *Habeas Corpus* allowed unto them. In short, when our Oppressors have been a little out of Mony, 'twas but pretending some Offence to be enquired into, and the most innocent of Men were continually put into no small Expence to answer the Demands of the Officers, who must have Mony of them, or a prison for them tho none could accuse them of any Misdemeanour.

§. VII. To plunge the poor People every where into deeper Incapacities, there was one very comprehensive Abuse given to us; Multitudes of pious and sober Men through the Land, scrupled the Mode of Swearing on the

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Book, desiring that they might Swear with an uplifted Hand, agreeable to the ancient Custom of the Colony; and though we think we can prove that the Common Law amongst us (as well as in some other places under the *English Crown*) not only indulges, but even commands and enjoins the Rite of lifting the Hand in *Swearing;* yet they that had this Doubt, were still put by from serving upon any Juries; and many of them were most unaccountably Fined and Imprisoned. Thus one Grievance is a *Trojan Horse,* in the Belly of which it is not easy to recount how many insufferable Vexations have been contained.

§. VIII. Because these things could not make us miserable fast enough, there was a notable Discovery made of we know not what *flaw* in all our *Titles to our Lands;* and, tho *besides* our purchase of them from the Natives; and, *besides* our actual peaceable unquestioned possession of them for near threescore Years, and besides the Promise of K. *Charles* II. in his Proclamation sent over to us in the Year 1683, That *no Man here shall receive any Prejudice in his Free-hold or Estate:* We had the Grant of our Lands, under the Seal of the *Council* of *Plimouth:* which Grant was Renewed and Confirmed unto us by King *Charles* I. under the Great Seal of *England;* and the *General Court* which consisted of the Patentees and their Associates, had made particular Grants hereof to the several *Towns* (though 'twas now deny'd by the Governour, that there was any such Thing as a *Town*) among us; to all which Grants the *General Court* annexed for the further securing of them, *A General Act,* published under the Seal of the Colony, in the Year 1684. Yet we were every day told, *That no man was owner of a Foot of Land in all the Colony.* Accordingly, *Writs of Intrusion* began every where to be served on People, that after all their Sweat and their Cost upon their formerly purchased Lands, thought themselves *Free-holders* of what they had. And the Governor caused the Lands pertaining to these and those *particular Men,* to be measured out for his Creatures to take possession of; and the *Right Owners,* for pulling up the Stakes, have passed through Molestations enough to tire all the patience in the World. They are more than a few, that were by Terrors driven to take *Patents* for their Lands at excessive rates, to save them from the next that might petition for them: and we fear that the forcing of the People at the *Eastward* hereunto, gave too much Rise to the late unhappy Invasion made by the *Indians* on them. *Blanck Patents* were got ready for the rest of us, to be sold at a Price, that all the Mony and Moveables in the Territory could scarce have paid. And several *Towns* in the Country had their *Commons* begg'd by Persons (even by some of the Council themselves) who have been privately encouraged thereunto, by those that sought for Occasions to impoverish a Land already *Peeled, Meeted out and Trodden down.*

§. IX. All the Council were not ingaged in these ill Actions, but those of them which were true Lovers *of their Country,* were seldom admitted to, and seldomer consulted at the Debates which produced these unrighteous Things: Care was taken to keep them under Disadvantages; and the Governor, with five or six more, did what they would. We bore all these, and many more such Things, without making any attempt for any Relief; only Mr. *Mather,* purely out of respect unto the Good of his Afflicted Country, undertook a Voyage into *England;* which when these Men suspected him to be preparing for, they used all manner of Craft and Rage, not only to interrupt his *Voyage,* but to ruin his *Person* too. God having through many Difficulties given him to arrive at *White-hall,* the King, more than once or twice, promised him a certain *Magna Charta* for a speedy Redress of many things which we were groaning under: and in the mean time said, *That our Governor should be written unto, to forbear the Measures that he was upon.* However, after this, we were injured in those very Things which were complained of; and besides what Wrong hath been done in our Civil Concerns, we suppose the *Ministers,* and the *Churches* every where have seen our Sacred Concerns apace going after them: How they have been Discountenanced, has had a room in the reflections of every man, that is not a stranger *in our Israel.*

§. X. And yet that our Calamity might not be terminated here, we are again Briar'd in the Perplexities of another *Indian War;* how, or why, is a mystery too deep for us to unfold. And tho' 'tis judged that our *Indian* Enemies are not above 100. in number, yet an Army of *One thousand* English hath been raised for the Conquering of them; which Army of our poor Friends and Brethren now under *Popish Commanders* (for in the Army as well as in the Council, Papists are in Commission) has been under such a conduct, that not one *Indian* hath been kill'd, but more English are supposed to have died through sickness and hardship, than we have adversaries there alive; and the whole War hath been so managed, that we cannot but suspect in it, a branch of the Plot *to bring us low;* which we leave to be further enquir'd into in due time.

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§. XI. We did nothing against these Proceedings, but only cry to our God; they *have caused the cry of the Poor to come unto him, and he hears the cry of the Afflicted.* We have been quiet hitherto, and so still we should have been, had not the Great God at this time laid us under a *double engagement* to do something for our security: besides, what we have in the strangely unanimous inclination, which our Countrymen by extreamest necessities are driven unto. For first, we are informed that the rest of the English *America* is Alarmed with just and great fears, that they may be attaqu'd by the *French,* who have lately ('tis said) already treated many of the English with worse then *Turkish* Cruelties; and while we are in equal danger of being surprised by them, it is high time we should be better guarded, than we are like to be while the Government remains in the hands by which it hath been held of late. Moreover, we have understood, (though the *Governour* has taken all imaginable care to keep us all ignorant thereof) that the Almighty God hath been pleased to prosper the noble undertaking of the Prince of *Orange,* to preserve the three Kingdoms from the horrible brinks of Popery and Slavery, and to bring to a Condign punishment those *worst of men,* by whom *English Liberties* have been destroy'd; in compliance with which Glorious Action, we ought surely to follow the Patterns which the Nobility, Gentry and Commonalty in several parts of those Kingdoms have set before us, though *they* therein chiefly proposed to prevent what *we* already endure.

§. XII. We do therefore seize upon the Persons of those few *Ill men* which have been (next to our Sins) the grand Authors of our Miseries; resolving to secure them, for what Justice, Orders from his Highness, with the *English Parliament* shall direct, lest, ere we are aware, we *find* (what we may *fear,* being on all sides in danger) our selves to be by them given away to a Forreign *Power,* before such Orders can reach unto us; for which Orders we now humbly wait. In the mean time firmly believing, that we have endeavoured nothing but what meer Duty to God and our *Country* calls for at our Hands: We commit our *Enterprise* unto the Blessing of Him, *who hears the cry of the Oppressed,* and advise all our Neighbours, for whom we have thus ventured our selves, to joyn with us in Prayers and all just Actions, for the Defence of the Land.

FINIS

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The English Bill of Rights

1689

After James II fled his throne, frightened by the army brought to England by William of Orange and the lack of support he found among his own people, a convention was called to determine who would succeed him and under what terms. The first term agreed upon was that Catholics would no longer be eligible to rule. Other terms were agreed upon by the convention, which was called by William as a representation of the English people and consisted of all those still living who had served in Parliament. Like Magna Charta and the Petition of Right, the Bill of Rights is a "declaration" in that its authors believed that they were merely declaring, or making clear, preexisting, customary rights. It did, however, have long-reaching effects by further establishing Parliament's role in legislation, limiting the king's power to raise and keep armies without Parliament's approval, and establishing further checks on the king's power to prosecute opponents in an arbitrary manner. It also established a firm line of royal succession to William's wife Mary (daughter of James II, who officially ruled jointly with William until her death) and her line, and excluded Catholics. The document does not include prohibitions against *quo warranto* proceedings, by means of which James had in essence revoked town charters, because James had given up his claim to that right before leaving the throne.

The English Bill of Rights

An Act for Declaring the Rights and Liberties of the Subject, and Settling the Succession of the Crown

Whereas the Lords Spiritual and Temporal, and Commons, assembled at Westminster, lawfully, fully, and freely representing all the estates of the people of this realm, did upon the Thirteenth day of February, in the year of our Lord One Thousand Six Hundred Eighty-eight, present unto their Majesties, then called and known by the names and style of William and Mary, Prince and Princess of Orange, being present in their proper persons, a certain Declaration in writing, made by the said Lords and Commons, in the words following, viz.:—

"Whereas the late King James II., by the assistance of divers evil counsellors, judges, and ministers employed by him, did endeavour to subvert and extirpate the Protestant religion, and the laws and liberties of this kingdom:—

1. By assuming and exercising a power of dispensing with and suspending of laws, and the execution of laws, without consent of Parliament.

2. By committing and prosecuting divers worthy prelates, for humbly petitioning to be excused from concurring to the said assumed power.

3. By issuing and causing to be executed a commission under the Great Seal for erecting a court, called the Court of Commissioners for Ecclesiastical Causes.

4. By levying money for and to the use of the Crown by pretence of prerogative, for other time and in other manner than the same was granted by Parliament.

5. By raising and keeping a standing army within this kingdom in time of peace, without consent of Parliament, and quartering soldiers contrary to law.

6. By causing several good subjects, being Protestants, to be disarmed, at the same time when Papists were both armed and employed contrary to law.

7. By violating the freedom of election of members to serve in Parliament.

8. By prosecutions in the Court of King's Bench for matters and causes cognizable only in Parliament; and by divers other arbitrary and illegal causes.

9. And whereas of late years, partial, corrupt, and unqualified persons have been returned, and served on juries in trials, and particularly diverse jurors in trials for high treason, which were not freeholders.

10. And excessive bail hath been required of persons committed in criminal cases, to elude the benefit of the laws made for the liberty of the subjects.

11. And excessive fines have been imposed; and illegal and cruel punishments inflicted.

12. And several grants and promises made of fines and forfeitures, before any conviction or judgment against the persons upon whom the same were to be levied.

All which are utterly and directly contrary to the known laws and statutes, and freedom of this realm.

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And whereas the said late King James II, having abdicated the government, and the throne being thereby vacant, his Highness the Prince of Orange (whom it hath pleased Almighty God to make the glorious instrument of delivering this kingdom from Popery and arbitrary power) did (by the advice of the Lords Spiritual and Temporal, and diverse principal persons of the Commons) cause letters to be written to the Lords Spiritual and Temporal, being Protestants, and other letters to the several counties, cities, universities, boroughs, and cinque ports, for the choosing of such persons to represent them, as were of right to be sent to Parliament, to meet and sit at Westminster upon the two-and-twentieth day of January, in this year one thousand six hundred eighty and eight, in order to such an establishment, as that their religion, laws, and liberties might not again be in danger of being subverted; upon which letters elections have been accordingly made.

And thereupon the said Lords Spiritual and Temporal, and Commons, pursuant to their respective letters and elections, being now assembled in a full and free representation of this nation, taking into their most serious consideration the best means for attaining the ends aforesaid, do in the first place (as their ancestors in like case have usually done), for the vindicating and asserting their ancient rights and liberties, declare:—

1. That the pretended power of suspending of laws, or the execution of laws, by regal authority, without consent of Parliament, is illegal.

2. That the pretended power of dispensing with laws, or the execution of laws by regal authority, as it hath assumed and exercised of late, is illegal.

3. That the commission for erecting the late Court of Commissioners for Ecclesiastical causes, and all other commissions and courts of like nature, are illegal and pernicious.

4. That levying money for or to the use of the Crown by pretence of prerogative, without grant of Parliament, for longer time or in other manner than the same is or shall be granted, is illegal.

5. That it is the right of the subjects to petition the King, and all commitments and prosecutions for such petitioning are illegal.

6. That the raising or keeping a standing army within the kingdom in time of peace, unless it be with consent of Parliament, is against law.

7. That the subjects which are Protestants may have arms for their defence suitable to their conditions, and as allowed by law.

8. That election of members of Parliament ought to be free.

9. That the freedom of speech, and debates or proceedings in Parliament, ought not to be impeached or questioned in any court or place out of Parliament.

10. That excessive bail ought not to be required, nor excessive fines imposed; nor cruel and unusual punishments inflicted.

11. That jurors ought to be duly impanelled and returned, and jurors which pass upon men in trials for high treason ought to be freeholders.

12. That all grants and promises of fines and forfeitures of particular persons before conviction are illegal and void.

13. And that for redress of all grievances, and for the amending, strengthening, and preserving of the laws, Parliament ought to be held frequently.

And they do claim, demand, and insist upon all and singular the premises, as their undoubted rights and liberties; and that no declarations, judgments, doings or proceedings, to the prejudice of the people in any of the said premises, ought in any wise to be drawn hereafter into consequence or example.

To which demand of their rights they are particularly encouraged by the declaration of his Highness the Prince of Orange, as being the only means for obtaining a full redress and remedy therein.

Having therefore an entire confidence that his said Highness the Prince of Orange will perfect the deliverance so far advanced by him, and will still preserve them from the violation of their rights, which they have here asserted, and from all other attempts upon their religion, rights, and liberties,

II. The said Lords Spiritual and Temporal, and Commons, assembled at Westminster, do resolve, that William and Mary, Prince and Princess of Orange, be, and be declared, King and Queen of England, France, and Ireland, and the dominions thereunto belonging, to hold the crown and royal dignity of the said kingdoms and dominions to them the said Prince and Princess during their lives, and the life of the survivor of them; and that the sole and full exercise of the regal power be only in, and executed by, the said Crown and royal dignity of the said kingdoms and dominions to be to the heirs of the body of the said Princess; and for default of such issue to the Princess Anne of Den-

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mark, and the heirs of her body; and for default of such issue to the heirs of the body of the said Prince of Orange. And the Lords Spiritual and Temporal, and Commons, do pray the said Prince and Princess to accept the same accordingly.

III. And that the oaths hereafter mentioned be taken by all persons of whom the oaths of allegiance and supremacy might be required by law, instead of them; and that the said oaths of allegiance and supremacy be abrogated.

"I, A. B., do sincerely promise and swear, That I will be faithful and bear true allegiance to their Majesties King William and Queen Mary:

"So help me God."

"I, A. B., do swear, That I do from my heart abhor, detest, and abjure as impious and heretical that damnable doctrine and position, that Princes excommunicated or deprived by the Pope, or any authority of the See of Rome, may be deposed or murdered by their subjects, or any other whatsoever. And I do declare, that no foreign prince, person, prelate, state, or potentate hath, or ought to have, any jurisdiction, power, superiority, preeminence, or authority, ecclesiastical or spiritual, within this realm:

"So help me God!"

IV. Upon which their said Majesties did accept the Crown and royal dignity of the kingdoms of England, France, and Ireland, and the dominions thereunto belonging, according to the resolution and desire of the said Lords and Commons contained in the said declaration.

V. And thereupon their Majesties were pleased, that the said Lords Spiritual and Temporal, and Commons, being the two Houses of Parliament, should continue to sit, and with their Majesties' royal concurrence make effectual provision for the settlement of the religion, laws and liberties of this kingdom, so that the same for the future might not be in danger again of being subverted, to which the said Lords Spiritual and Temporal, and Commons, did agree and proceed to act accordingly.

VI. Now in pursuance of the premises, the said Lords Spiritual and Temporal, and Commons, in Parliament assembled, for the ratifying, confirming, and establishing the said declaration, and the articles, clauses, matters, and things therein contained, by the force of a law made in due form by authority of Parliament, do pray that it may be declared and enacted, That all and singular the rights and liberties asserted and claimed in the said declaration are the true, ancient, and indubitable rights and liberties of the people of this kingdom, and so shall be esteemed, allowed, adjudged, deemed, and taken to be, and that all and every of the particulars aforesaid shall be firmly and strictly holden and observed, as they are expressed in the said declaration; and all officers and ministers whatsoever shall serve their Majesties and their successors according to the same in all times to come.

VII. And the said Lords Spiritual and Temporal, and Commons, seriously considering how it hath pleased Almighty God, in his marvellous providence, and merciful goodness to this nation, to provide and preserve their said Majesties' royal persons most happily to reign over us upon the throne of their ancestors, for which they render unto Him from the bottom of their hearts their humblest thanks and praises, do truly, firmly, assuredly, and in the sincerity of their hearts, think, and do hereby recognize, acknowledge, and declare, that King James II, having abdicated the Government, and their Majesties having accepted the Crown and royal dignity aforesaid, their said Majesties did become, were, are, and of right ought to be, by the laws of this realm, our sovereign liege Lord and Lady, King and Queen of England, France, and Ireland, and the dominions thereunto belonging, in and to whose princely persons the royal state, crown, and dignity of the same realms, with all honours, styles, titles, regalties, prerogatives, powers, jurisdictions, and authorities to the same belonging and appertaining, are most fully, rightfully, and entirely invested and incorporated, united, and annexed.

VIII. And for preventing all questions and divisions in this realm, by reason of any pretended titles to the Crown, and for preserving a certainty in the succession thereof, in and upon which the unity, peace, tranquility, and safety of this nation doth, under God, wholly consist and depend, the said Lords Spiritual and Temporal, and Commons, do beseech their Majesties that it may be enacted, established, and declared, that the Crown and regal government of the said kingdoms and dominions, with all and singular the premises thereunto belonging and appertaining, shall be and continue to their said Majesties, and the survivor of them, during their lives, and the life of the survivor of them. And that the entire, perfect, and full exercise of the regal power and government be only in, and executed by,

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his Majesty, in the names of both their Majesties, during their joint lives; and after their deceases the said Crown and premises shall be and remain to the heirs of the body of her Majesty: and for default of such issue, to her Royal Highness the Princess Anne of Denmark, and the heirs of her body; and for default of such issue, to the heirs of the body of his said Majesty: And thereunto the said Lords Spiritual and Temporal, and Commons, do, in the name of all the people aforesaid, most humbly and faithfully submit themselves, their heirs and posterities, forever: and do faithfully promise, that they will stand to, maintain, and defend their said Majesties, and also the limitation and succession of the Crown herein specified and contained, to the utmost of their powers, with their lives and estates, against all persons whatsoever that shall attempt anything to the contrary.

IX. And whereas it hath been found by experience, that it is inconsistent with the safety and welfare of this Protestant kingdom, to be governed by a Popish prince, or by any king or queen marrying a Papist, the said Lords Spiritual and Temporal, and Commons, do further pray that it may be enacted, That all and every person and persons that is, are, or shall be reconciled to, or shall hold communion with, the See or Church of Rome, or shall profess the Popish religion, or shall marry a Papist, shall be excluded, and be for ever incapable to inherit, possess, or enjoy the Crown and Government of this realm, and Ireland, and the dominions thereunto belonging, or any part of the same, or to have, use, or exercise any regal power, authority, or jurisdiction within the same; and in all and every such case or cases the people of these realms shall be and are hereby absolved of their allegiance; and the said Crown and Government shall from time to time descend to, and be enjoyed by, such person or persons, being Protestants, as should have inherited and enjoyed the same, in case the said person or persons so reconciled, holding communion, or professing, or marrying, as aforesaid, were naturally dead.

X. And that every King and Queen of this realm, who at any time hereafter shall come to and succeed in the Imperial Crown of this kingdom, shall, on the first day of the meeting of the first Parliament, next after his or her coming to the Crown, sitting in his or her throne in the House of Peers, in the presence of the Lords and Commons therein assembled, or at his or her coronation, before such person or persons who shall administer the coronation oath to him or her, at the time of his or her taking the said oath (which shall first happen), make, subscribe, and audibly repeat the declaration mentioned in the statute made in the thirteenth year of the reign of King Charles II., intituled "An act for the more effectual preserving the King's person and Government, by disabling Papists from sitting in either House of Parliament." But if it shall happen, that such King or Queen, upon his or her succession to the Crown of this realm, shall be under the age of twelve years, then every such King or Queen shall make, subscribe, and audibly repeat the said declaration at his or her coronation, or the first day of meeting of the first Parliament as aforesaid, which shall first happen after such King or Queen shall have attained the said age of twelve years.

XI. All which their Majesties are contented and pleased shall be declared, enacted, and established by authority of this present Parliament, and shall stand, remain, and be the law of this realm for ever; and the same are by their said Majesties, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in Parliament assembled, and by the authority of the same, declared, enacted, or established accordingly.

XII. And be it further declared and enacted by the authority aforesaid, that from and after this present session of Parliament, no dispensation by *non obstante* of or to any statute, or any part thereof, shall be allowed, but that the same shall be held void and of no effect, except a dispensation be allowed of in such statute, and except in such cases as shall be specially provided for by one or more bill or bills to be passed during this present session of Parliament.

XIII. Provided that no charter, or grant, or pardon granted before the three-and-twentieth day of October, in the year of our Lord One thousand six hundred eighty-nine, shall be any ways impeached or invalidated by this Act, by that the same shall be and remain of the same force and effect in law, and no other, than as if this Act had never been made.

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The Stamp Act

March 22, 1765

After fighting several wars against France during the eighteenth century, Great Britain found itself with vast new territories in North America and a vast public debt. Seeking new sources to tax, Parliament hit upon the colonists in America. The justification for taxing Americans was that they had not been paying their fair share of public expenses even though British troops had been defending their homes for decades. Americans had always been "taxed" through trade regulations that restricted domestic manufacturing and decreed that all goods must go through British ports on British ships, but Americans had not paid specific taxes on specific goods. And colonists had avoided much of the expense of trade regulations by engaging in widespread smuggling. Thus, in addition to its taxes, the Stamp Act also called for the use of harsh admiralty courts to ferret out smugglers. Yet Parliament was unprepared for the violent reaction its legislation would bring.

The Stamp Act

An act for granting and applying certain stamp duties, and other duties, in the British *colonies and plantations in* America, *towards further defraying the expences of defending, protecting, and securing the same; and for amending such parts of the several acts of parliament relating to the trade and revenues of the said colonies and plantations, as direct the manner of determining and recovering the penalties and forfeitures therein mentioned.*

Whereas *by an act made in the last session of parliament, several duties were granted, continued, and appropriated, towards defraying the expences of defending, protecting, and securing, the* British *colonies and plantations in* America: *and whereas it is just and necessary, that provision be made for raising a further revenue within your Majesty's dominions in* America, *towards defraying the said expences:* we, your Majesty's most dutiful and loyal subjects, the commons of *Great Britain* in parliament assembled, have therefore resolved to give and grant unto your Majesty the several rates and duties herein after mentioned; and do most humbly beseech your Majesty that it may be enacted, and be it enacted by the King's most excellent majesty, by and with the advice and consent of the lords spiritual and temporal, and commons, in this present parliament assembled, and by the authority of the same, That from and after the first day of *November,* one thousand seven hundred and sixty five, there shall be raised, levied, collected, and paid unto his Majesty, his heirs, and successors, throughout the colonies and plantations in *America* which now are, or hereafter may be, under the dominion of his Majesty, his heirs and successors,

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written or printed, any declaration, plea, replication, rejoinder, demurrer, or other pleading, or any copy thereof, in any court of law within the *British* colonies and plantations in *America,* a stamp duty of three pence.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written or printed, any special bail and appearance upon such bail in any such court, a stamp duty of two shillings.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any petition, bill, answer, claim, plea, replication, rejoinder, demurrer, or other pleading in any court of chancery or equity within the said colonies and plantations, a stamp duty of one shilling and six pence.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any copy of any petition, bill, answer, claim, plea, replication, rejoinder, demurrer, or other pleading in any such court, a stamp duty of three pence.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any monition, libel, answer, allegation, inventory, or renunciation in ecclesiastical matters in any court of probate, court of the ordinary, or other court exercising ecclesiastical jurisdiction within the said colonies and plantations, a stamp duty of one shilling.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written,

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or printed, any copy of any will (other than the probate thereof) monition, libel, answer, allegation, inventory, or renunciation in ecclesiastical matters in any such court, a stamp duty of six pence.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any donation, presentation, collation, or institution of or to any benefice, or any writ or instrument for the like purpose, or any register, entry, testimonial, or certificate of any degree taken in any university, academy, college, or seminary of learning, within the said colonies and plantations, a stamp duty of two pounds.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any monition, libel, claim, answer, allegation, information, letter of request, execution, renunciation, inventory, or other pleading, in any admiralty court within the said colonies and plantations, a stamp duty of one shilling.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which any copy of any such monition, libel, claim, answer, allegation, information, letter of request, execution, renunciation, inventory, or other pleading shall be ingrossed, written, or printed, a stamp duty of six pence.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any appeal, writ of error, writ of dower, *Ad quod damnum,* certiorari, statute merchant, statute staple, attestation, or certificate, by any officer, or exemplification of any record or proceeding in any court whatsoever within the said colonies and plantations (except appeals, writs of error, certiorari, attestations, certificates, and exemplifications, for or relating to the removal of any proceedings from before a single justice of the peace) a stamp duty of ten shillings.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any writ of covenant for levying of fines, writ of entry for suffering a common recovery, or attachment issuing out of, or returnable into, any court within the said colonies and plantations, a stamp duty of five shillings.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any judgment, decree, sentence, or dismission, or any record of *Nisi Prius* or *Postea,* in any court within the said colonies and plantations, a stamp duty of four shillings.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any affidavit, common bail or appearance, interrogatory deposition, rule, order, or warrant of any court, or any *Dedimus Potestatem, Capias, Subpoena,* summons, compulsory citation, commission, recognizance, or any other writ, process, or mandate, issuing out of, or returnable into, any court, or any office belonging thereto, or any other proceeding therein whatsoever, or any copy thereof, or of any record not herein before charged, within the said colonies and plantations (except warrants relating to criminal matters, and proceeding thereon or relating thereto) a stamp duty of one shilling.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any licence, appointment, or admission of any counsellor, solicitor, attorney, advocate, or proctor, to practise in any court, or of any notary within the said colonies and plantations, a stamp duty of ten pounds.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any note or bill of lading, which shall be signed for any kind of goods, wares, or merchandize, to be exported from, or any cocket or clearance granted within the said colonies and plantations, a stamp duty of four pence. . . .

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which any grant of any liberty, privilege, or franchise, under the seal of any of the said colonies or plantations, or under the seal or sign manual of any governor, proprietor, or publick officer alone, or in conjunction with any other person or persons, or with any council, or any council and assembly, or any exemplification of the same, shall be ingrossed, written, or printed, within the said colonies and plantations, a stamp duty of six pounds.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any licence for retailing of spirituous liquors, to be granted to any person who shall take out the same, within the said colonies and plantations, a stamp duty of twenty shillings. . . .

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written or printed, any such probate, letters of administration or of

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guardianship, within all other parts of the *British* dominions in *America,* a stamp duty of ten shillings. . . .

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any indenture, lease, conveyance, contract, stipulation, bill of sale, charter party, protest, articles of apprenticeship, or covenant (except for the hire of servants not apprentices, and also except such other matters as are herein before charged) within the *British* colonies and plantations in *America,* a stamp duty of two shillings and six pence.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which any warrant or order for auditing any publick accounts, beneficial warrant, order, grant, or certificate, under any publick seal, or under the seal or sign manual of any governor, proprietor, or publick officer alone, or in conjunction with any other person or persons, or with any council, or any council and assembly, not herein before charged, or any passport or let-pass, surrender of office, or policy of assurance, shall be ingrossed, written, or printed, within the said colonies and plantations (except warrants or orders for the service of the navy, army, ordnance, or militia, and grants of offices under twenty pounds *per annum* in salary, fees, and perquisites) a stamp duty of five shillings.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which shall be ingrossed, written, or printed, any notarial act, bond, deed, letter of attorney, procuration, mortgage, release, or other obligatory instrument, not herein before charged, within the said colonies and plantations, a stamp duty of two shillings and three pence. . . .

And for and upon every pack of playing cards, and all dice, which shall be sold or used within the said colonies and plantations, the several stamp duties following (that is to say)

For every pack of such cards, the sum of one shilling.

And for every pair of such dice, the sum of ten shillings.

And for and upon every paper, commonly called a *pamphlet,* and upon every news paper, containing publick news, intelligence, or occurrences, which shall be printed, dispersed, and made publick, within any of the said colonies and plantations, and for and upon such advertisements as are herein after mentioned, the respective duties following (that is to say)

For every such pamphlet and paper contained in half a sheet, or any lesser piece of paper, which shall be so printed, a stamp duty of one halfpenny, for every printed copy thereof.

For every such pamphlet and paper (being larger than half a sheet, and not exceeding one whole sheet) which shall be so printed, a stamp duty of one penny, for every printed copy thereof.

For every pamphlet and paper being larger than one whole sheet, and not exceeding six sheets in octavo, or in a lesser page, or not exceeding twelve sheets in quarto, or twenty sheets in folio, which shall be so printed, a duty after the rate of one shilling for every sheet of any kind of paper which shall be contained in one printed copy thereof.

For every advertisement to be contained in any gazette, news paper, or other paper, or any pamphlet which shall be so printed, a duty of two shillings.

For every almanack or calendar, for any one particular year, or for any time less than a year, which shall be written or printed on one side only of any one sheet, skin, or piece of paper parchment, or vellum, within the said colonies and plantations, a stamp duty of two pence.

For every other almanack or calendar for any one particular year, which shall be written or printed within the said colonies and plantations, a stamp duty of four pence.

And for every almanack or calendar written or printed within the said colonies and plantations, to serve for several years, duties to the same amount respectively shall be paid for every such year.

For every skin or piece of vellum or parchment, or sheet or piece of paper, on which any instrument, proceeding, or other matter or thing aforesaid, shall be ingrossed, written, or printed, within the said colonies and plantations, in any other than the *English* language, a stamp duty of double the amount of the respective duties before charged thereon.

And there shall be also paid in the said colonies and plantations, a duty of six pence for every twenty shillings, in any sum not exceeding fifty pounds sterling money, which shall be given, paid, contracted, or agreed for, with or in relation to any clerk or apprentice, which shall be put or placed to or with any master or mistress to learn any profession, trade, or employment. . . .

LIV. And be it further enacted by the authority aforesaid, That all the monies which shall arise by the several rates and duties hereby granted (except the necessary charges of raising, collecting, recovering, answering, pay-

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ing, and accounting for the same, and the necessary charges from time to time incurred in relation to this act, and the execution thereof) shall be paid into the receipt of his Majesty's exchequer, and shall be entered separate and apart from all other monies, and shall be there reserved to be from time to time disposed of by parliament, towards further defraying the necessary expences of defending, protecting, and securing, the said colonies and plantations. . . .

LVIII. And it is hereby further enacted and declared by the authority aforesaid, That all sums of money granted and imposed by this act as rates or duties, and also all sums of money imposed as forfeitures or penalties, and all sums of money required to be paid, and all other monies herein mentioned, shall be deemed and taken to be sterling money of *Great Britain,* and shall be collected, recovered, and paid, to the amount of the value which such nominal sums bear in *Great Britain;* and that such monies shall and may be received and taken, according to the proportion and value of five shillings and six pence the ounce in silver; and that all the forfeitures and penalties hereby inflicted, and which shall be incurred, in the said colonies and plantations, shall and may be prosecuted, sued for, and recovered, in any court of record, or in any court of admiralty, in the respective colony or plantation where the offence shall be committed, or in any court of vice admiralty appointed or to be appointed, and which shall have jurisdiction within such colony, plantation, or place, (which courts of admiralty or vice admiralty are hereby respectively authorized and required to proceed, hear, and determine the same,) at the election of the informer or prosecutor; and that from and after the twenty ninth day of *September,* one thousand seven hundred and sixty five, in all cases, where any suit or prosecution shall be commenced and determined for any penalty or forfeiture inflicted by this act, or by the said act made in the fourth year of his present Majesty's reign, or by any other act of parliament relating to the trade or revenues of the said colonies or plantations, in any court of admiralty in the respective colony or plantation where the offence shall be committed, either party, who shall think himself aggrieved by such determination, may appeal from such determination to any court of vice admiralty appointed or to be appointed, and which shall have jurisdiction within such colony, plantation, or place, (which court of vice admiralty is hereby authorized and required to proceed, hear, and determine such appeal) any law, custom, or usage, to the contrary notwithstanding; and the forfeitures and penalties hereby inflicted, which shall be incurred in any other part of his Majesty's dominions, shall and may be prosecuted, sued for, and recovered, with full costs of suit, in any court of record within the kingdom, territory, or place, where the offence shall be committed, in such and the same manner as any debt or damage, to the amount of such forfeiture or penalty, can or may be sued for and recovered.

LIX. And it is hereby further enacted, That all the forfeitures and penalties hereby inflicted shall be divided, paid, and applied, as follows; (that is to say) one third part of all such forfeitures and penalties recovered in the said colonies and plantations, shall be paid into the hands of one of the chief distributors of stamped vellum, parchment, and paper, residing in the colony or plantation wherein the offender shall be convicted, for the use of his Majesty, his heirs, and successors; one third part of the penalties and forfeitures, so recovered, to the governor or commander in chief of such colony or plantation; and the other third part thereof, to the person who shall inform or sue for the same; and that one moiety of all such penalties and forfeitures recovered in any other part of his Majesty's dominions, shall be to the use of his Majesty, his heirs, and successors, and the other moiety thereof, to the person who shall inform or sue for the same.

LX. And be it further enacted by the authority aforesaid, That all the offences which are by this act made felony [counterfeiting or forging a stamped paper], and shall be committed within any part of his Majesty's dominions, shall and may be heard, tried, and determined, before any court of law within the respective kingdom, territory, colony, or plantation, where the offence shall be committed, in such and the same manner as all other felonies can or may be heard, tried, and determined, in such court.

LXI. And be it further enacted by the authority aforesaid, That all the present governors or commanders in chief of any *British* colony or plantation, shall, before the said first day of *November,* one thousand seven hundred and sixty five, and all who hereafter shall be made governors or commanders in chief of the said colonies or plantations, or any of them, before their entrance into their government, shall take a solemn oath to do their utmost, that all and every the clauses contained in this present act be punctually and *bona fide* observed, according to the true intent and meaning thereof, so far as appertains unto the said governors or commanders in chief respectively, under the

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like penalties, forfeitures, and disabilities, either for neglecting to take the said oath, or for wittingly neglecting to do their duty accordingly, as are mentioned and expressed in an act made in the seventh and eighth year of the reign of King *William* the Third, intituled, *An act for preventing frauds, and regulating abuses, in the plantation trade;* and the said oath hereby required to be taken, shall be administered by such person or persons as hath or have been, or shall be, appointed to administer the oath required to be taken by the said act made in the seventh and eighth year of the reign of King *William* the Third.

LXII. And be it further enacted by the authority aforesaid, That all records, writs, pleadings, and other proceedings in all courts whatsoever, and all deeds, instruments, and writings whatsoever, hereby charged, shall be ingrossed and written in such manner as they have been usually accustomed to be ingrossed and written, or are now ingrossed and written within the said colonies and plantations.

LXIII. And it is hereby further enacted, That if any person or persons shall be sued or prosecuted, either in *Great Britain* or *America,* for any thing done in pursuance of this act, such person and persons shall and may plead the general issue, and give this act and the special matter in evidence; and if it shall appear so to have been done, the jury shall find for the defendant or defendants: and if the plaintiff or plaintiffs shall become non-suited, or discontinue his or their action after the defendant or defendants shall have appeared, or if judgement shall be given upon any verdict or demurrer against the plaintiff or plaintiffs, the defendant or defendants shall recover treble costs, and have the like remedy for the same, as defendants have in other cases by law.

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Braintree Instructions

JOHN ADAMS

1765

John Adams (1735–1826) was only thirty-one years old when he penned these instructions from his township to their colonial representative, but they were accepted unanimously and without amendment by his neighbors. In the instructions, the future revolutionary leader and second president of the United States sets out the colonists' objections to the Stamp Act, focusing on the burdensome nature of its unaccustomed tax and the danger to liberty from its extension of military justice into tax proceedings against colonists. Well before independence, Americans had developed a system of legislative representation that allowed for significant input from local citizens. Thus, it would have been no surprise to Mr. Thayer, the representative to whom these instructions are addressed, that his constituents should "instruct" him of their desire that he express their opposition to the Stamp Act and work to see it repealed.

Instructions of the Town of Braintree to Their Representative, 1765

To Ebenezer Thayer, Esq.

Sir,—In all the calamities which have ever befallen this country, we have never felt so great a concern, or such alarming apprehensions, as on this occasion. Such is our loyalty to the King, our veneration for both houses of Parliament, and our affection for all our fellow-subjects in Britain, that measures which discover any unkindness in that country towards us are the more sensibly and intimately felt. And we can no longer forbear complaining, that many of the measures of the late ministry, and some of the late acts of Parliament, have a tendency, in our apprehension, to divest us of our most essential rights and liberties. We shall confine ourselves, however, chiefly to the act of Parliament, commonly called the Stamp Act, by which a very burthensome, and, in our opinion, unconstitutional tax, is to be laid upon us all; and we subjected to numerous and enormous penalties, to be prosecuted, sued for, and recovered, at the option of an informer, in a court of admiralty, without a jury.

We have called this a burthensome tax, because the duties are so numerous and so high, and the embarrassments to business in this infant, sparsely-settled country so great, that it would be totally impossible for the people to subsist under it, if we had no controversy at all about the right and authority of imposing it. Considering the present scarcity of money, we have reason to think, the execution of that act for a short space of time would drain the country of its cash, strip multitudes of all their property, and reduce them to absolute beggary. And what the consequence would be to the peace of the province, from so sudden a shock and such a convulsive change in the whole course of our business and subsistence, we tremble to consider. We further apprehend this tax to be unconstitutional. We have always understood it to be a grand and fundamental principle of the constitution, that no freeman should be subject to any tax to which he has not given his own consent, in person or by proxy. And the maxims of the law, as we have constantly received them, are to the same effect, that no freeman can be separated from his property but by his own act or fault. We take it clearly, therefore, to be inconsistent with the spirit of the common law, and of the essential fundamental principles of the British constitution, that we should be subject to any tax imposed by the British Parliament; because we are not represented in that assembly in any sense, unless it be by a fiction of law, as insensible in theory as it would be injurious in practice, if such a taxation should be grounded on it.

But the most grievous innovation of all, is the alarming extension of the power of courts of admiralty. In these courts, one judge presides alone! No juries have any concern there! The law and the fact are both to be decided by the same single judge, whose commission is only during pleasure, and with whom, as we are told, the most mischievous of all customs has become established, that of tak-

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ing commissions on all condemnations; so that he is under a pecuniary temptation always against the subject. Now, if the wisdom of the mother country has thought the independency of the judges so essential to an impartial administration of justice, as to render them independent of every power on earth,—independent of the King, the Lords, the Commons, the people, nay, independent in hope and expectation of the heir-apparent, by continuing their commissions after a demise of the crown, what justice and impartiality are we, at three thousand miles distance from the fountain, to expect from such a judge of admiralty? We have all along thought the acts of trade in this respect a grievance; but the Stamp Act has opened a vast number of sources of new crimes, which may be committed by any man, and cannot but be committed by multitudes, and prodigious penalties are annexed, and all these are to be tried by such a judge of such a court! What can be wanting, after this, but a weak or wicked man for a judge, to render us the most sordid and forlorn of slaves?—we mean the slaves of a slave of the servants of a minister of state. We cannot help asserting, therefore, that this part of the act will make an essential change in the constitution of juries, and it is directly repugnant to the Great Charter itself; for, by that charter, "no amerciament shall be assessed, but by the oath of honest and lawful men of the vicinage;" and, "no freeman shall be taken, or imprisoned, or disseized of his freehold, or liberties of free customs, nor passed upon, nor condemned, but by lawful judgment of his peers, or by the law of the land." So that this act will "make such a distinction, and create such a difference between" the subjects in Great Britain and those in America, as we could not have expected from the guardians of liberty in "both."

As these, sir, are our sentiments of this act, we, the freeholders and other inhabitants, legally assembled for this purpose, must enjoin it upon you, to comply with no measures or proposals for countenancing the same, or assisting in the execution of it, but by all lawful means, consistent with our allegiance to the King, and relation to Great Britain, to oppose the execution of it, till we can hear the success of the cries and petitions of America for relief.

We further recommend the most clear and explicit assertion and vindication of our rights and liberties to be entered on the public records, that the world may know, in the present and all future generations, that we have a clear knowledge and a just sense of them, and, with submission to Divine Providence, that we never can be slaves.

Nor can we think it advisable to agree to any steps for the protection of stamped papers or stamp-officers. Good and wholesome laws we have already for the preservation of the peace; and we apprehend there is no further danger of tumult and disorder, to which we have a well-grounded aversion; and that any extraordinary and expensive exertions would tend to exasperate the people and endanger the public tranquillity, rather than the contrary. Indeed, we cannot too often inculcate upon you our desires, that all extraordinary grants and expensive measures may, upon all occasions, as much as possible, be avoided. The public money of this country is the toil and labor of the people, who are under many uncommon difficulties and distresses at this time, so that all reasonable frugality ought to be observed. And we would recommend particularly, the strictest care and the utmost firmness to prevent all unconstitutional draughts upon the public treasury.

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Resolutions of the Virginia House of Burgesses

June 1765

Declarations of the Stamp Act Congress

October 24, 1765

Opposition to the Stamp Act was strong, wide, and at times violent throughout the American colonies. For centuries, English subjects had responded to unpopular acts and legislation by petitioning the king for redress of their grievances. The colonists had been enthusiastic participants in this tradition since the founding of settlements in America. They continued that tradition during the Stamp Act crisis, further underlining their attachment to local, colonial legislatures by acting through bodies such as the House of Burgesses, the lower house of Virginia's legislature. In addition, however, colonists called a special congress of representatives from throughout the colonies to address the Stamp Act. This Stamp Act Congress issued its own statement of colonial grievances. The stated grievances were consistent: colonists were being taxed without their consent, in violation of ancient chartered rights, and they were being subjected to unfair and unaccustomed legal proceedings through the extension of admiralty court jurisdiction to tax cases in the colonies.

Resolutions of the Virginia House of Burgesses

Resolved, That the first Adventurers and Settlers of this his Majesty's Colony and Dominion of *Virginia* brought with them, and transmitted to their Posterity, and all other his Majesty's Subjects since inhabiting in this his Majesty's said Colony, all the Liberties, Privileges, Franchises, and Immunities, that have at any Time been held, enjoyed, and possessed, by the people of *Great Britain.*

Resolved, That by two royal Charters, granted by King *James* the First, the Colonists aforesaid are declared entitled to all Liberties, Privileges, and Immunities of Denizens and natural Subjects, to all Intents and Purposes, as if they had been abiding and born within the Realm of *England.*

Resolved, That the Taxation of the People by themselves, or by Persons chosen by themselves to represent them, who can only know what Taxes the People are able to bear, or the easiest Method of raising them, and must themselves be affected by every Tax laid on the People, is the only Security against a burthensome Taxation, and the distinguishing Characteristick of *British* Freedom, without which the ancient Constitution cannot exist.

Resolved, That his Majesty's liege People of this his most ancient and loyal Colony have without Interruption enjoyed the inestimable Right of being governed by such Laws, respecting their internal Polity and Taxation, as are derived from their own Consent, with the Approbation of their Sovereign, or his Substitute; and that the same hath never been forfeited or yielded up, but hath been constantly recognized by the Kings and People of *Great Britain.*

Declarations of the Stamp Act Congress

The Members of this Congress, sincerely devoted, with the warmest Sentiments of Affection and Duty to his Majesty's Person and Government, inviolably attached to the present happy Establishment of the Protestant Succession, and with Minds deeply impressed by a Sense of the present and impending Misfortunes of the *British* Colonies on this Continent; having considered as maturely as Time will permit, the Circumstances of the said Colonies, esteem it our indispensable Duty, to make the following Declarations of our humble Opinion, respecting the most Essential Rights and Liberties of the Colonists, and of the Grievances under which they labour, by Reason of several late Acts of Parliament.

I. That his Majesty's Subjects in these Colonies, owe the same Allegiance to the Crown of *Great-Britain,* that is owing from his Subjects born within the Realm, and all due Subordination to that August Body the Parliament of *Great-Britain.*

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II. That his Majesty's Liege Subjects in these Colonies, are entitled to all the inherent Rights and Liberties of his Natural born Subjects, within the Kingdom of *Great-Britain.*

III. That it is inseparably essential to the Freedom of a People, and the undoubted Right of *Englishmen,* that no Taxes be imposed on them, but with their own Consent, given personally, or by their Representatives.

IV. That the People of these Colonies are not, and from their local Circumstances cannot be, Represented in the House of Commons in *Great-Britain.*

V. That the only Representatives of the People of these Colonies, are Persons chosen therein by themselves, and that no Taxes ever have been, or can be Constitutionally imposed on them, but by their respective Legislature.

VI. That all Supplies to the Crown, being free Gifts of the People, it is unreasonable and inconsistent with the Principles and Spirit of the *British* Constitution, for the People of *Great-Britain,* to grant to his Majesty the Property of the Colonists.

VII. That Trial by Jury, is the inherent and invaluable Right of every *British* Subject in these Colonies.

VIII. That the late Act of Parliament, entitled, *An Act for granting and applying certain Stamp Duties, and other Duties, in the* British *Colonies and Plantations in* America, *&c.* by imposing Taxes on the Inhabitants of these Colonies, and the said Act, and several other Acts, by extending the Jurisdiction of the Courts of Admiralty beyond its ancient Limits, have a manifest Tendency to subvert the Rights and Liberties of the Colonists.

IX. That the Duties imposed by several late Acts of Parliament, from the peculiar Circumstances of these Colonies, will be extremely Burthensome and Grievous; and from the scarcity of Specie, the Payment of them absolutely impracticable.

X. That as the Profits of the Trade of these Colonies ultimately center in *Great-Britain,* to pay for the Manufactures which they are obliged to take from thence, they eventually contribute very largely to all Supplies granted there to the Crown.

XI. That the Restrictions imposed by several late Acts of Parliament, on the Trade of these Colonies, will render them unable to purchase the Manufactures of *Great-Britain.*

XII. That the Increase, Prosperity, and Happiness of these Colonies, depend on the full and free Enjoyment of their Rights and Liberties, and an Intercourse with *Great-Britain* mutually Affectionate and Advantageous.

XIII. That it is the Right of the *British* Subjects in these Colonies, to Petition the King, or either House of Parliament.

Lastly, That it is the indispensable Duty of these Colonies, to the best of Sovereigns, to the Mother Country, and to themselves, to endeavour by a loyal and dutiful Address to his Majesty, and humble Applications to both Houses of Parliament, to procure the Repeal of the Act for granting and applying certain Stamp Duties, of all Clauses of any other Acts of Parliament, whereby the Jurisdiction of the Admiralty is extended as aforesaid, and of the other late Acts for the Restriction of *American* Commerce.

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The Rights of the British Colonies Asserted and Proved

JAMES OTIS

1763

James Otis (1725–83) was a lawyer, colonial official, and leading advocate for the rights of his fellow American colonists. In 1761, he resigned his post as advocate general of the Vice Admiralty Court to protest the issuance of writs of assistance by the Massachusetts superior court. These writs essentially gave authorities the right to search wherever they pleased for smuggled goods; Otis argued that they violated the rights of Englishmen. Soon thereafter, Otis was instrumental in calling for the Stamp Act Congress, in which he served. His public career was cut short when, in 1769, he suffered a blow to the head in an argument with a customs commissioner; the injury resulted in Otis's eventually going insane. In arguing against the Stamp Act, Otis in this selection restates his argument that colonists in America were entitled to the same rights as Englishmen.

The Rights of the British Colonies Asserted and Proved

Of the Political and Civil Rights of the British Colonists

Here indeed opens to view a large field; but I must study brevity—Few people have extended their enquiries after the foundation of any of their rights, beyond a charter from the crown. There are others who think when they have got back to old *Magna Charta,* that they are at the beginning of all things. They imagine themselves on the borders of Chaos (and so indeed in some respects they are) and see creation rising out of the unformed mass, or from nothing. Hence, say they, spring all the rights of men and of citizens. . . . But liberty was better understood, and more fully enjoyed by our ancestors, before the coming in of the first Norman Tyrants than ever after, 'till it was found necessary, for the salvation of the kingdom, to combat the arbitrary and wicked proceedings of the Stuarts.

The present happy and most righteous establishment is justly built on the ruins, which those Princes bro't on their Family; and two of them on their own heads—The last of the name sacrificed three of the finest kingdoms in Europe, to the councils of bigotted old women, priests and more weak and wicked ministers of state: He afterward went a grazing in the fields of St. Germains, and there died in disgrace and poverty, a terrible example of God's vengeance on arbitrary princes!

The deliverance under God wrought by the prince of Orange, afterwards deservedly made King Wm. 3rd. was as joyful an event to the colonies as to Great-Britain: In some of them steps were taken in his favour as soon as in England.

They all immediately acknowledged King William and Queen Mary as their lawful Sovereign. And such has been the zeal and loyalty of the colonies ever since for that establishment, and for the protestant succession in his Majesty's illustrious family, that I believe there is not one man in an hundred (except in Canada) who does not think himself under the best national civil constitution in the world.

Their loyalty has been abundantly proved, especially in the late war. Their affection and reverence for their mother country is unquestionable. They yield the most chearful and ready obedience to her laws, particularly to the power of that august body the parliament of Great-Britain, the supreme legislative of the kingdom and in dominions. These I declare are my own sentiments of duty and loyalty. I also hold it clear that the act of Queen Anne, which makes it high treason to deny "that the King with and by the authority of parliament, is able to make laws and statutes of sufficient force and validity to *limit and bind* the crown, and the descent, limitation, inheritance and *government* thereof" is founded on the principles of liberty and the British constitution: And he that would palm the doctrine of unlimited passive obedience and non-resistance upon

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mankind, and thereby or by any other means serve the cause of the Pretender, is not only a fool and a knave, but a rebel against common sense, as well as the laws of God, of Nature, and his Country.

—I also lay it down as one of the first principles from whence I intend to deduce the civil rights of the British colonies, that all of them are subject to, and dependent on Great-Britain; and that therefore as over subordinate governments, the parliament of Great-Britain has an undoubted power and lawful authority to make acts for the general good, that by naming them, shall and ought to be equally binding, as upon the subjects of Great-Britain within the realm. This principle, I presume will be readily granted on the other side of the Atlantic. It has been practiced upon for twenty years to my knowledge, in the province of the *Massachusetts-Bay;* and I have ever received it, that it has been so from the beginning, in this and the sister provinces, thro' the continent.*

I am aware, some will think it is time for me to retreat, after having expressed the power of the British parliament in quite so strong terms. But 'tis from and under this very power and its acts, and from the common law, that the political and civil rights of the Colonists are derived: And upon those grand pillars of liberty shall my defence be rested. At present therefore, the reader may suppose, that there is not one provincial charter on the continent; he may, if he pleases, imagine all taken away, without fault, without forfeiture, without tryal or notice. All this really happened to some of them in the last century. I would have the reader carry his imagination still further, and suppose a time may come, when instead of a process at common law, the parliament shall give a decisive blow to every charter in America, and declare them all void. Nay it shall also be granted, that 'tis barely possible, the time may come, when the real interest of the whole may require an act of parliament to annihilate all those charters. What could follow from all this, that would shake one of the essential, natural, civil or religious rights of the Colonists? Nothing. They would be men, citizens and british subjects after all. No act of parliament can deprive them of the liberties of such, unless any will contend that an act of parliament can make slaves not only of one, but of two millions of the commonwealth. And if so, why not of the whole? I freely own, that I can find nothing in the laws of my country, that would justify the parliament in making one slave, nor did they ever professedly undertake to make one.

Two or three innocent colony charters have been threatned with destruction an hundred and forty years past. I wish the present enemies of those harmless charters would reflect a moment, and be convinced that an act of parliament that should demolish those bugbears to the foes of liberty, would not reduce the Colonists to a state of absolute slavery. The worst enemies of the charter governments are by no means to be found in England. 'Tis a piece of justice due to Great-Britain to own, they are and have ever been natives of or residents in the colonies. A set of men in America, without honour or love to their country, have been long grasping at powers, which they think unattainable while these charters stand in the way. But they will meet with insurmountable obstacles to their project for enslaving the British colonies, should those, arising from provincial charters be removed. It would indeed seem very hard and severe, for those of the colonists, who have charters, with peculiar priviledges, to loose them. They were given to their ancestors, in consideration of their sufferings and merit, in discovering and settling America. Our forefathers were soon worn away in the toils of hard labour on their little plantations, and in war with the Savages. They thought they were earning a sure inheritance for their posterity. Could they imagine it would ever be tho't just to deprive them or theirs of their charter priviledges! Should this ever be the case, there are, thank God, natural, inherent and inseperable rights as men, and as citizens, that would remain after the so much wished for catastrophe, and which, whatever became of charters, can never be abolished *de jure,* if *de facto,* till the general conflagration.† Our rights as men and free born British subjects, give all the Colonists enough to make them very happy in comparison with the subjects of any other prince in the world.

Every British subject born on the continent of America, or in any other of the British dominions, is by the law of God and nature, by the common law, and by act of parliament, (exclusive of all charters from the Crown) entitled to all the natural, essential, inherent and inseparable rights of

*This however was formally declared as to Ireland, but so lately as the reign of G. 1. Upon the old principles of conquest the Irish could not have so much to say for an exemption, as the unconquered Colonists.

†The fine defence of the provincial charters of *Jeremy Dummer,* Esq.; the late very able and learned agent for the province of the *Massachusetts Bay,* makes it needless to go into a particular consideration of charter priviledges. That piece is unanswerable, but by power and might, and other arguments of that kind.

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our fellow subjects in Great Britain. Among those rights are the following, which it is humbly conceived no man or body of men, not excepting the parliament, justly equitably and consistently with their own rights and the constitution, can take away.

1st. *That the supreme and subordinate powers of the legislation should be free and sacred in the hands where the community have once rightfully placed them.*

2dly. *The supreme national legislative cannot be altered justly 'till the commonwealth is dissolved, nor a subordinate legislative taken away without forfeiture or other good cause.* Nor then can the subjects in the subordinate government be reduced to a state of slavery, and subject to the despotic rule of others. A state has no right to make slaves of the conquered. Even when the subordinate right of legislature is forfeited, and so declared, this cannot affect the natural persons either of those who were invested with it, or the inhabitants,* so far as to deprive them of the rights of subjects and of men—The colonists will have an equitable right notwithstanding any such forfeiture of charter, to be represented in Parliament, or to have some new subordinate legislature among themselves. It would be best if they had both. Deprived however of their common rights as subjects, they cannot lawfully be, while they remain such. A representation in Parliament from the several Colonies, since they are become so large and numerous, as to be called on not to maintain provincial government, civil and military among themselves, for this they have chearfully done, but to contribute towards the support of a national standing army, by reason of the heavy national debt, when they themselves owe a large one, contracted in the common cause, can't be tho't an unreasonable thing, nor if asked, could it be called an immodest request. *Qui sentis commodum sentire debet et onus,* has been tho't a maxim of equity. But that a man should bear a burthen for other people, as well as himself, without a return, never long found a place in any law-book or decrees, but those of the most despotic princes. Besides the equity of an American representation in parliament, a thousand advantages would result from it. It would be the most effectual means of giving those of both countries a thorough knowledge of each others interests; as well as that of the whole, which are inseparable.

Were this representation allowed; instead of the scandalous memorials and depositions that have been sometimes, in days of old, privately cooked up in an inquisitorial manner, by persons of bad minds and wicked views, and sent from America to the several boards, persons of the first reputation among their countrymen, might be on the spot, from the several colonies, truly to represent them. Future ministers need not, like some of their predecessors, have recourse for information in American affairs, to every vagabond stroller, that has run or rid post thro' America, from his creditors, or to people of no kind of reputation from the colonies; some of whom, at the time of administring their sage advice, have been as ignorant of the state of the country, as of the regions in Jupiter and Saturn.

No representation of the Colonies in parliament alone, would however be equivalent to a subordinate legislative among themselves; nor so well answer the ends of increasing their prosperity and the commerce of Great-Britain. It would be impossible for the parliament to judge so well, of their abilities to bear taxes, impositions on trade, and other duties and burthens, or of the local laws that might be really needful, as a legislative here.

3dly. *No legislative, supreme or subordinate, has a right to make itself arbitrary.*

It would be a most manifest contradiction, for a free legislative, like that of Great-Britain, to make itself arbitrary.

4thly. *The supreme legislative cannot justly assume a power of ruling by extempore arbitrary decrees, but is bound to dispense justice by known settled rules, and by duly authorized independant judges.*

5thly. *The supreme power cannot take from any man any part of his property, without his consent in person, or by representation.*

6thly. *The legislature cannot transfer the power of making laws to any other hands.*

These are their bounds, which by God and nature are fixed, hitherto have they a right to come, and no further.

1. *To govern by stated laws.*

2. *Those laws should have no other end ultimately, but the good of the people.*

3. *Taxes are not to be laid on the people, but by their consent in person, or by deputation.*

4. *Their whole power is not transferable.*†

These are the first principles of law and justice, and the great barriers of a free state, and of the British constitution in particular. I ask, I want no more —Now let it be shown

*See Magna Charta, the Bill of Rights. 3 Mod. 152 2. Salkeld 411. Vaughan 300.

†See Locke on Government. B. II. C. xi.

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how 'tis reconcileable with these principles, or to many other fundamental maxims of the British constitution, as well as the natural and civil rights, which by the laws of their country, all British subjects are intitled to, as their best inheritance and birth-right, that all the northern colonies, who are without one representative in the house of Commons, should be taxed by the British parliament.

That the colonists, black and white, born here, are free born British subjects, and entitled to all the essential civil rights of such, is a truth not only manifest from the provincial charters, from the principles of the common law, and acts of parliament; but from the British constitution, which was reestablished at the revolution, with a professed design to lecture the liberties of all the subjects to all generations.*

In the 12 and 13 of Wm. cited above, the liberties of the subject are spoken of as their best birth-rights—No one ever dreamt, surely, that these liberties were confined to the realm. At that rate, no British subjects in the dominions could, without a manifest contradiction, be declared entitled to all the privileges of subjects born within the realm, to all intents and purposes, which are rightly given foreigners, by parliament, after residing seven years. These expressions of parliament, as well as of the charters, must be vain and empty sounds, unless we are allowed the essential rights of our fellow-subjects in Great-Britain.

Now can there be any liberty, where property is taken away without consent? Can it with any colour of truth, justice or equity, be affirmed, that the northern colonies are represented in parliament? Has this whole continent of near three thousand miles in length, and in which and his other American dominions, his Majesty has, or very soon will have, some millions of as good, loyal and useful subjects, white and black, as any in the three kingdoms, the election of one member of the house of commons?

Is there the least difference, as to the consent of the Colonists, whether taxes and impositions are laid on their trade, and other property, by the crown alone, or by the parliament? As it is agreed on all hands, the Crown alone cannot impost them. We should be justifiable in refusing to pay them, but must and ought to yield obedience to an act of parliament, tho' erroneous, 'till repealed.

I can see no reason to doubt, but that the imposition of taxes, whether on trade, or on land, or houses, or ships, on real or personal, fixed or floating property, in the colonies, is absolutely irreconcileable with the rights of the Colonists, as British subjects, and as men. I say men, for in a state of nature, no man can take my property from me, without my consent: If he does, he deprives me of my liberty, and makes me a slave. If such a proceeding is a breach of the law of nature, no law of society can make it just—The very act of taxing, exercised over those who are not represented, appears to me to be depriving them of one of their most essential rights, as freemen; and if continued, seems to be in effect an entire disfranchisement of every civil right. For what one civil right is worth a rush, after a man's property is subject to be taken from him at pleasure, without his consent? If a man is not his *own assessor* in person, or by deputy, his liberty is gone, or lays intirely at the mercy of others.

I think I have heard it said, that when the Dutch are asked why they enslave their colonies, their answer is, that the liberty of Dutchmen is confined to Holland; and that it was never intended for Provincials in America, or anywhere else. A sentiment this, very worthy of modern Dutchmen; but if their brave and worthy ancestors had entertained such narrow ideas of liberty, seven poor and distressed provinces would never have asserted their rights against the whole Spanish monarchy, of which the present is but a shadow. It is to be hoped, none of our fellow subjects of Britain, great or small, have borrowed this Dutch maxim of plantation politics; if they have, they had better return it from whence it came; indeed they had. Modern Dutch or French maxims of state, never will suit with a British constitution. It is a maxim, that the King can do no wrong; and every good subject is bound to believe his King is not inclined to do any. We are blessed with a prince who has given abundant demonstrations, that in all his actions, he studies the good of his people, and the true glory of his crown, which are inseparable. It would therefore, be the highest degree of impudence and disloyalty to imagine that the King, at the head of his parliament, could have any, but the most pure and perfect intentions of justice, goodness and truth, that human nature is capable of. All this I say and believe of the King and parliament, in all their acts; even in that which so nearly affects the interest of the colonists; and that a most perfect and ready obedience is to be yielded to it, while it remains in force. I will go further, and readily admit, that the intention of the ministry was not only to promote the public good, by this act; but that

*See the convention, and acts confirming it.

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Mr. Chancellor of the Exchequer had therein a particular view to the "ease, the quiet, and the good will of the Colonies," he having made this declaration more than once. Yet I hold that 'tis possible he may have erred in his kind intentions towards the Colonies, and taken away our fish and given us a stone. With regard to the parliament, as infallability belongs not to mortals, 'tis possible *they* may have been misinformed and deceived. The power of parliament is uncontroulable, but by themselves, and we must obey. They only can repeal their own acts. There would be an end of all government, if one or a number of subjects or subordinate provinces should take upon them so far to judge of the justice of an act of parliament, as to refuse obedience to it. If there was nothing else to restrain such a step, prudence ought to do it, for forceably resisting the parliament and the King's laws, is high treason. Therefore let the parliament lay what burthens they please on us, we must, it is our duty to submit and patiently bear them, till they will be pleased to relieve us. And tis to be presumed, the wisdom and justice of that august assembly, always will afford us relief by repealing such acts, as through mistake, or other human infirmities, have been suffered to pass, if they can be convinced that their proceedings are not constitutional, or not for the common good.

The parliament may be deceived, they may have been misinformed of facts, and the colonies may in many respects be misrepresented to the King, his parliament, and his ministry. In some instances, I am well assured the colonies have been very strangely misrepresented in England. I have now before me a pamphlet, called the "administration of the colonies," said to be written by a gentleman who formerly commanded in chief in one of them. I suppose this book was designed for public information and use. There are in it many good regulations proposed, which no power can enforce but the parliament. From all which I infer, that if our hands are tied by the passing of an act of parliament, our mouths are not stoped, provided we speak of that transcendent body with decency, as I have endeavoured always to do; and should any thing have escaped me, or hereafter fall from my pen, that bears the least aspect but that of obedience, duty and loyalty to the King & parliament, and the highest respect for the ministry, the candid will impute it to the agony of my heart, rather than to the pravity of my will. If I have one ambitious wish, 'tis to see Great-Britain at the head of the world, and to see my King, under God, the father of mankind. I pretend neither to the spirit of prophecy, nor any uncommon skill in predicting a Crisis, much less to tell when it begins to be "*nascent*" or is fairly midwiv'd into the world. But if I were to fix a meaning to the two first paragraphs of the *administrations of the colonies,* tho' I do not collect it from them, I should say the world was at the eve of the highest scene of earthly power and grandeur that has been ever yet displayed to the view of mankind. The cards are shuffling fast thro' all Europe. Who will win the prize is with God. This however I know *detur digniori.* The next universal monarchy will be favourable to the human race, for it must be founded on the principles of equity, moderation and justice. No country has been more distinguished for these principles than Great-Britain, since the revolution. I take it, every subject has a right to give his sentiments to the public, of the utility or inutility of any act whatsoever, even after it is passed, as well as while it is pending.—The equity and justice of a bill may be questioned, with perfect submission to the legislature. Reasons may be given, why an act ought to be repeal'd, & yet obedience must be yielded to it till that repeal takes place. If the reasons that can be given against an act, are such as plainly demonstrate that it is against *natural* equity, the executive courts will adjudge such acts void. It may be questioned by some, tho' I make no doubt of it, whether they are not obliged by their oaths to adjudge such acts void. If there is not a right of private judgement to be exercised, so far at least as to petition for a repeal, or to determine the expediency of risking a trial at law, the parliament might make itself arbitrary, which it is conceived it can not by the constitution.—I think every man has a right to examine as freely into the origin, spring and foundation of every power and measure in a commonwealth, as into a piece of curious machinery, or a remarkable phenomenon in nature; and that it ought to give no more offence to say, the parliament have erred, or are mistaken, in a matter of fact, or of right, than to say it of a private man, if it is true of both. If the assertion can be proved with regard to either, it is a kindness done them to show them the truth. With regard to the public, it is the duty of every good citizen to point out what he thinks erroneous in the commonwealth.

I have waited years in hopes to see some one friend of the colonies pleading in publick for them. I have waited in vain. One priviledge is taken away after another, and where we shall be landed, God knows, and I trust will protect and provide for us even should we be driven and per-

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secuted into a more western wilderness, on the score of liberty, civil and religious, as many of our ancestors were, to these once inhospitable shores of America. I had formed great expectations from a gentleman, who published his first volume in quarto on the rights of the colonies two years since; but, as he foresaw, the state of his health and affairs have prevented his further progress. The misfortune is, gentlemen in America, the best qualified in every respect to state the rights of the colonists, have reasons that prevent them from engaging: Some of them have good ones. There are many infinitely better able to serve this cause than I pretend to be; but from indolence, from timidity, or by necessary engagements, they are prevented. There has been a most profound, and I think shameful silence, till it seems almost too late to assert our indisputable rights as men and as citizens. What must posterity think of us. The trade of the whole continent taxed by parliament, stamps and other internal duties and taxes as they are called, talked of, and not one petition to the King and Parliament for relief.

I cannot but observe here, that if the parliament have an equitable right to tax our trade, 'tis indisputable that they have as good an one to tax the lands, and every thing else. The taxing trade furnishes one reason why the other should be taxed, or else the burdens of the province will be unequally born, upon a supposition that a tax on trade is not a tax on the whole. But take it either way, there is no foundation for the distinction some make in England, between an internal and an external tax on the colonies. By the first is meant a tax on trade, by the latter a tax on land, and the things on it. A tax on trade is either a tax of every man in the province, or 'tis not. If 'tis not a tax on the whole, 'tis unequal and unjust, that a heavy burden should be laid on the trade of the colonies, to maintain an army of soldiers, custom-house officers, and fleets of guard-ships; all which, the incomes of both trade and land would not furnish means to support so lately as the last war, when all was at stake, and the colonies were reimbursed in part by parliament. How can it be supposed that all of a sudden the trade of the colonies alone can bear all this terrible burden. The late acquisitions in America, as glorious as they have been, and as beneficial as they are to Great-Britain, are only a security to these colonies against the ravages of the French and Indians. Our trade upon the whole is not, I believe, benefited by them one groat. All the time the French Islands were in our hands, the fine sugars, &c. were all shipped home. None as I have been informed were allowed to be bro't to the colonies. They were too delicious a morsel for a North American palate. If it be said that a tax on the trade of the colonies is an equal and just tax on the whole of the inhabitants: What then becomes of the notable distinction between external and internal taxes? Why may not the parliament lay stamps, land taxes, establish tythes to the church of England, and so indefinitely. I know of no bounds. I do not mention the tythes out of any disrespect to the church of England, which I esteem by far the best *national* church, and to have had as ornaments of it many of the greatest and best men in the world. But to those colonies who in general dissent from a principle of conscience, it would seem a little hard to pay towards the support of a worship, whose modes they cannot conform to.

If an army must be kept in America, at the expence of the colonies, it would not seem quite so hard if after the parliament had determined the sum to be raised, and apportioned it, to have allowed each colony to assess its quota, and raise it as easily to themselves as might be. But to have the whole levied and collected without our consent is extraordinary. 'Tis allowed even to *tributaries,* and those laid under *military* contribution, to assess and collect the sums demanded. The case of the provinces is certainly likely to be the hardest that can be instanced in story. Will it not equal any thing but down right military execution? Was there ever a tribute imposed even on the conquered? A fleet, an army of soldiers, and another of taxgatherers kept up, and not a single office either for securing or collecting the duty in the gift of the tributary state.

I am aware it will be objected, that the parliament of *England,* and of Great Britain, since the union, have from early days to this time, made acts to bind if not to tax Ireland: I answer, Ireland is a *conquered* country. I do not, however, lay so much stress on this; for it is my opinion, that a *conquered* country has, upon submission and good behaviour, the same right to be free, under a conqueror, as the rest of his subjects. But the old notion of the *right of conquest,* has been, in most nations, the cause of many severities and heinous breaches of the law of nature: If any such have taken place with regard to *Ireland,* they should form no precedent for the colonies. The subordination and dependency of *Ireland* to Great Britain, is expresly declared

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by act of parliament, in the reign of G. 1st. The subordination of the *Colonies* to Great Britain, never was doubted, by a Lawyer, if at all; unless perhaps by the author of the administration of the colonies: He indeed seems to make a moot point of it, whether the colony legislative power is as independent "as the legislative Great Britain holds by its constitution, and under the great charter." — The *people* hold under the great charter, as 'tis vulgarly expressed from our law-books: But that the King and parliament should be said to hold under *Magna Charta,* is as new to me, as it is to question whether the colonies are *subordinate* to Great Britain. The provincial legislative is unquestionably subordinate to that of Great Britain. I shall endeavour more fully to explain the nature of that subordination, which has puzzled so many in their enquiries. It is often very difficult for great lovers of power and great lovers of liberty, neither of whom may have been used to the study of law, in any of its branches, to see the difference between subordination, absolute slavery and subjection, on one side; and liberty, independence and licenciousness, on the other. We should endeavour to find the middle road, and confine ourselves to it. The laws, the proceedings of parliament, and the decisions of the judges, relating to *Ireland,* will reflect light on this subject, rendered intricate only by art.

"Ireland being of itself a distinct dominion, and no part of the kingdom of England (as directly appeareth by many authorities in Calvin's case) was to have Parliaments holden there as in England." 4 Inst. 349.

Why should not the colonies have, why are they not entitled to their assemblies, or parliaments, at least, as well as a conquered dominion?

"Wales, after the conquest of it, by Edward, the first, was annexed to England, jure proprietatis, 12 Ed. 1. by the statute of Rutland only, and after, more really by 27 H. 8. and 34, but at first received laws from England, as Ireland did; but writs proceeded not out of the English chancery, but they had a Chancery of their own, as Ireland hath; was not bound by the laws of England, unnamed until 27 H. 8. no more than Ireland is.

Ireland in nothing differs from it, but having a parliament *gratia Regis* (i.e. upon the old notion of conquest) subject (truly however) to the parliament of England. None doubts Ireland as much conquered as it; *and as much subject to the parliament of England, if it please.*"

Vaughan. 300.

A very strong argument arises from this authority, in favour of the *unconquered* plantations. If since Wales was annexed to England, they have had a representation in parliament, as they have to this day; and if the parliament of England does not tax *Ireland,* can it be right they should tax *us,* who have never been *conquered,* but came from England to *colonize,* and have always remained *good subjects* to this day?

I cannot find any instance of a tax laid by the English parliament on *Ireland.* "Sometimes the King of England called his Nobles of Ireland, to come to his parliament of England, &c. and by special words, the parliament of England may bind the subjects of Ireland"—3 Inst. 350—.

The following makes it clear to me, the parliament of Great Britain do not tax *Ireland,* "The parliament of Ireland having been prorogued to the month of August *next, before they had provided for the maintenance of the government in that kingdom, a project* was set on foot here to supply that defect, by retrenching the drawbacks upon goods exported thither from England. According to this scheme, the 22d, the house in a grand committee, considered the present laws with respect to drawbacks upon tobaccoes, muslins, and East India silks, carried to Ireland; and came to two resolutions, which were reported the next day, and with an amendment to one of them agreed to by the house, as follows, Viz. 1. That three pence pr pound, part of the drawback on tobacco to be exported from Great Britain for Ireland, be taken off.

2. That the said diminution of the drawback do take effect upon all tobacco exported for Ireland, after the 24 of March 1713, and continue until the additional duty of three pence half penny per pound upon tobacco in Ireland, expiring on the said 24th of March, be *regranted:* And ordered a bill to be brought in, upon the said resolutions."

Proceedings of House of Commons, Vol. 5. 72.

This was constitutional; there is an infinite difference between taking off British drawbacks, and imposing Irish or other Provincial duties.

"Ireland is considered as a provincial government, subordinate to, but no part of the Realm of England," Mich. 11. G. 2. in case of Otway and Ramsay—"Acts of parliament made here, (i.e. in England) extend not to Ireland, unless particularly named; much less judgments obtained in the courts here; nor is it possible they should, because we have no officers to carry them into execution there." *ib.*

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The first part seems to be applicable to the plantations in general, the latter is not; for by reason of charter reservations and particular acts of parliament, some judgments in England may be executed here, as final judgments, before his Majesty in council on a plantation appeal, and so from the admiralty.

It seems to have been disputed in Ireland, so lately as the 6 Geo. 1. Whether any act of the British parliament bound Ireland; or at least it was apprehended, that the undoubted right of the British parliament to bind Ireland, was in danger of being shaken: This, I presume, occasioned the act of that year, which declares, that "the kingdom of Ireland ought to be subordinate unto and dependent upon the Imperial Crown of Great Britain, as being inseparably united thereto. And the King's Majesty, with the consent of the lords and commons of Great Britain in parliament, hath power to make laws to bind the people of Ireland."—This parliamentary power must have some bounds, even as to *Ireland,* as well as the colonies who are admitted to be subordinate *ab initio* to Great Britain; not as *conquered,* but as *emigrant* subjects. If this act should be said to be a declaration not only of the general, but of the universal power of parliament, and that they may tax Ireland, I ask, Why it has never been done? If it had been done a thousand times, it would be a contradiction to the principles of a free government; and what is worse, destroy all subordination consistent with *freedom,* and reduce the people to *slavery.*

To say the parliament is absolute and arbitrary, is a contradiction. The parliament cannot make 2 and 2, 5; Omnipotency cannot do it. The supreme power in a state, is *jus dicere* only;—*jus dare,* strictly speaking, belongs alone to God. Parliaments are in all cases to *declare* what is parliament that makes it so: There must be in every instance, a higher authority, viz. GOD. Should an act of parliament be against any of *his* natural laws, which are *immutably* true, their declaration would be contrary to eternal truth, equity and justice, and consequently void: and so it would be adjudged by the parliament itself, when convinced of their mistake. Upon this great principle, parliaments repeal such acts, as soon as they find they have been mistaken, in having declared them to be for the public good, when in fact they were not so. When such mistake is evident and palpable, as in the instances in the appendix, the judges of the executive courts have declared the act "of a whole parliament void." See here the grandeur of the British constitution! See the wisdom of our ancestors! The supreme *legislative,* and the supreme *executive,* are a perpetual check and balance to each other. If the supreme executive errs, it is informed by the supreme legislative in parliament: If the supreme legislative errs, it is informed by the supreme executive in the King's courts of law. —Here, the King appears, as represented by his judges, in the highest lustre and majesty, as supreme executor of the commonwealth; and he never shines brighter, but on his Throne, at the head of the supreme legislative. This is government! This, is a constitution! to preserve which, either from foreign or domestic foes, has cost oceans of blood and treasure in every age; and the blood and the treasure have upon the whole been well spent. British America, hath been bleeding in this cause from its settlement: We have spent all we could raise, and more; for notwithstanding the parliamentary reimbursement of part, we still remain much in debt. The province of the *Massachusetts,* I believe, has expended more men and money in war since the year 1620, when a few families first landed at Plymouth, in proportion to their ability, than the three Kingdoms together. The same, I believe, may be truly affirmed, of many of the other colonies; tho' the *Massachusetts* has undoubtedly had the heaviest burthen. This may be thought incredible: but materials are collecting; and tho' some are lost, enough may remain, to demonstrate it to the world. I have reason to hope at least, that the public will soon see such proofs exhibited, as will show, that I do not speak quite at random.

Why then is it thought so heinous by the author of the administration of the colonies, and others, that the colonists should aspire after "a one whole legislative power" not independent of, but subordinate to the laws and parliament of Great-Britain? . . . It is a mistake in this author, to bring so heavy a charge as *high treason* against some of the colonists, which he does in effect in this place,* by representing them as "claiming in fact or indeed, the same full free independent unrestrained power and legislative will, in their several corporations, and under the King's commission, and their respective charters, as the government and legislature of Great-Britain holds by its constitution and under the great charter." No such claim was ever tho't of by any of the colonists. They are all better men and better subjects; and many of them too well versed in the laws of nature and nations, and the law and constitution of Great-Britain, to think they have a right to more than a *provin-*

*Page 39 of the administration.

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cial subordinate legislative. All power is of GOD. Next and only subordinate to him, in the present state of the well-formed, beautifully constructed British monarchy, standing where I hope it ever will stand, for the pillars are fixed in judgment, righteousness and truth, is the King and Parliament. Under these, it seems easy to conceive subordinate powers in gradation, till we descend to the legislative of a town council, or even a private social club. These have each "a one whole legislative" subordinate, which, when it don't conteract the laws of any of its superiors, is to be indulged. Even when the laws of subordination are transgressed, the superior does not destroy the subordinate, but will negative its acts, as it may in all cases when disapproved. This right of negative is essential, and may be inforced: But in no case are the essential rights of the subjects, inhabiting the subordinate dominions, to be destroyed. This would put it in the power of the superior to reduce the inferior to a state of slavery; which cannot be rightfully done, even with *conquered* enemies and *rebels.* After satisfaction and security is obtained of the former, and examples are made of so many of the latter, as the ends of government require, the rest are to be restored to all the essential rights of men and of citizens. This is the great law of nature: and agreeable to this law, is the constant practice of all good and mild governments. This lenity and humanity has no where been carried further than in Great Britain. The Colonies have been so remarkable for loyalty, that there never has been any instance of rebellion or treason in them. This loyalty is in very handsome terms acknowledged by the author of the administration of the colonies. "It has been often suggested that care should be taken in the administration of the plantations, lest, in some future time, these colonies should become independent of the mother country. But perhaps it may be proper on this occasion, and, it is justice to say it, that if, by becoming independent, is meant a revolt, nothing is further from their nature, their interest, their thoughts. If a defection from the *alliance* of the mother country be suggested, it ought to be, and can be truly said, that their spirit abhors the sense of such; their attachment to the protestant succession in the house of Hanover, will ever stand unshaken; and nothing can eradicate from their hearts their natural and almost mechanical, affection to Great Britain, which they conceive under no other sense nor call by any other name than that of *home.* Any such suggestion, therefore, is a false and unjust aspersion on their principles and affections; and can arise from nothing but an intire ignorance of their circumstances."* After all this loyalty, it is a little hard to be charged with claiming, and represented as aspiring after, independency. The inconsistency of this I leave. We have said that the loyalty of the colonies has never been suspected; this must be restricted to a just suspicion. For it seems there have long been groundless suspicions of us in the minds of individuals. And there have always been those who have endeavoured to magnify these chimerical fears. I find Mr. Dummer complaining of this many years since.

"There is, says he, one thing more I have heard often urged against the charter colonies, and indeed tis what one meets with from people of all conditions and qualities, tho' with due respect to their better judgments, I can see neither reason nor colour for it. 'Tis said that their increasing numbers and wealth, joined to their great distance from Britain, will give them an opportunity, in the course of some years, to throw off their dependence on the nation, and declare themselves a free state, if not curb'd in time, by being made *entirely subject to the crown.*"†

This jealousy has been so long talked of, that many seems to believe it really well grounded. Not that there is danger of a "revolt," even in the opinion of the *author of the administration,* but that the colonists will by fraud or force avail themselves, in "fact or in deed," of an independent legislature. This, I think, would be a revolting with a vengeance. What higher revolt can there be, than for a province to assume the right of an independent legislative, or state? I must therefore think this a greater aspersion on the Colonists, than to charge them with a design to revolt, in the sense in which the Gentleman allows they have been abused: It is a more artful and dangerous way of attacking our liberties, than to charge us with being in open rebellion. That could be confuted instantly: but this seeming indirect way of charging the colonies, with a desire of throwing off their dependency, requires more pains to confute it than the other, therefore it has been recurred to. The truth is, Gentlemen have had departments in America, the functions of which they have not been fortunate in executing. The people have by these means been rendered uneasy, at bad Provincial measures. They have been represented as factious, seditious, and inclined to democracy whenever they have refused passive obedience to provincial man-

*Administration, p. 25, 26.
†Defence. 60.

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dates, as arbitrary as those of a Turkish Bashaw: I say, Provincial mandates; for to the King and Parliament they have been ever submissive and obedient.

These representations of us, many of the good people of England swallow with as much ease, as they would a bottle-bubble, or any other story of a cock and a bull; and the worst of it is, among some of the most credulous, have been found Stars and Garters. However, they may all rest assured, the Colonists, who do not pretend to understand themselves so well as the people of England; tho' the author of the Administration makes them the fine compliment, to say, they "know their business much better," yet, will never think of independency. Were they inclined to it, they know the blood and the treasure it would cost, if ever effected; and when done, it would be a thousand to one if their liberties did not fall a sacrifice to the victor.

We all think ourselves happy under Great-Britain. We love, esteem and reverence our mother country, and adore our King. And could the choice of independency be offered the colonies, or subjection to Great-Britain upon any terms above absolute slavery, I am convinced they would accept the latter. The ministry, in all future generations may rely on it, that British America will never prove undutiful, till driven to it, as the last fatal resort against ministerial oppression, which will make the wisest mad, and the weakest strong.

These colonies are and always have been, "entirely subject to the crown," in the legal sense of the terms. But if any politician of "*tampering activity, of wrongheaded inexperience, misted to be meddling," means, by "curbing the colonies in time," and by "being made entirely subject to the crown;" that this subjection should be absolute, and confined to the crown, he had better have suppressed his wishes. This never will nor can be done, without making the colonists vassals of the crown. Subjects they are; their lands they hold of the crown, by common soccage, the freest feudal tennure, by which any hold their lands in England, or any where else. Would these gentlemen carry us back to the state of the Goths and Vandals, and revive all the military tenures and bondage which our fore-fathers could not bear? It may be worth nothing here, that few if any instances can be given, where colonies have been disposed to forsake or disobey a tender mother: But history is full of examples, that armies, stationed as guards over provinces, have seized the prey for their general, and given him a crown at the expence of his master. Are all ambitious generals dead? Will no more rise up hereafter? The danger of a standing army in remote provinces is much greater to the metropolis, than at home. Rome found the truth of this assertion, in her Sylla's, her Pompey's and Caesars; but she found it too late: Eighteen hundred years have roll'd away since her ruin. A continuation of the same liberties that have been enjoyed by the colonists since the revolution, and the same moderation of government exercised towards them, will bind them in perpetual lawful and willing subjection, obedience and love to Great-Britain: She and her colonies will both prosper and flourish: The monarchy will remain in sound health and full vigor at that blessed period, when the proud arbitrary tyrants of the continent shall either unite in the deliverance of the human race, or resign their crowns. Rescued, human nature must and will be, from the general slavery that has so long triumphed over the species. Great-Britain has done much towards it: What a Glory will it be for her to complete the work throughout the world!

The author of the Administration (page 54) "describes" the defects of the "provincial courts," by a "very description," the first trait of which is, "The ignorance of the judges." Whether the description, or the description of the description, are *verily* true, either as applied by Lord Hale, or the Administrator, is left to the reader. I only ask, who makes the judges in the provinces? I know of but two colonies, viz. Connecticut and Rhode-Island, where they are chosen by the people. In all other colonies, they are either immediately appointed by the crown, or by his Majesty's governor, with the advice of what the Administrator calls, the "governor's council of state." And if they are in general such ignorant creatures, as the Administrator describes them, 'tis the misfortune, not the fault, of the people, in the colonies. However, I believe, justice in general, is as well administered in the colonies, as it will be when every thing is devolved upon a court of admiralty, general or provincial. The following is very remarkable. "In those popular governments, and where every executive officer is under a dependence for a temporary, wretched, and I had almost said arbitrary support, on the deputies of the people." †

Why is the temporary support found fault with? Would it be wise to give a governor a salary for a longer time than

*Administration. 34.

†Administ. 56.

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his political life? As this is quite as uncertain as his natural life, it has been granted annually. So every governor has the chance of one year's salary after he is dead. All the King's officers, are not even in the charter provinces "dependent on the people" for support. The judges of the admiralty, those mirrors of justice, to be trusted, when none of the common law courts are, have all their commissions from home. These, besides other fees, have so much per cent on all they condemn, be it right or wrong, *and this by act of parliament.* Yet so great is their integrity, that it never was suspected that 50 per cent, if allowed, would have any influence on their decrees.

Custom-house officers universally, and Naval-officers, in all but two or three of the colonies, are, I believe, appointed directly from home, or by instruction to the Governor: and take just what they please, for any restraint they are under by the provincial acts. But on whom should a Governor depend for his honorable support, but the people? Is not the King fed from the field, and from the labor of his people? Does not his Majesty himself receive his aids from the free grant of his parliament? Do not all these originate in the house of commons? Did the house of Lords ever originate a grant? Do not our law books inform us that the Lords only assent or dissent, but never so much as propose an amendment, on a money bill? The King can take no more than the Parliament will give him, and yet some of his Governors have tho't it an insufferable hardship, that they could not take what they pleased. To take leave of the administrator, there are in his book some good hints, but a multiplicity of mistakes in fact, and errors in matters of right, which I have not time to mention particularly.

Ireland is a conquered kingdom; and yet have tho't they received very hard measure in some of the prohibitions and restrictions of their trade. But were the colonies ever conquered? Have they not been subjects and obedient, and loyal from their settlement? Were not the settlements made under the British laws and constitution? But if the colonies were all to be considered as conquered, they are entitled to the essential rights of men and citizens. And therefore admitting the right of prohibition, in its utmost extent and latitude; a right of taxation can never be infer'd from that. It may be for the good of the whole, that a certain commodity should be prohibited: But this power should be exercised, with great *moderation* and impartiality, over dominions, which are not *represented,* in the national parliament. I had however rather see this carried with a high hand, to the utmost rigor, than have a tax of one shilling taken from me without my consent. A people may be very happy; free and easy among themselves, without a particular branch of foreign trade: I am sure these colonies have the natural means of every manufacture in *Europe,* and some that are out of their power to make or produce. It will scarcely be believed a hundred years hence, that the American manufactures could have been brought to such perfection, as they will then probably be in, if the present measures are pushed. One single act of parliament, we find has set people a thinking, in six months, more than they had done in their whole lives before. It should be remembered, that the most famous and flourishing manufactures, of wool, in *France,* were begun by *Lewis* 14, not an hundred years ago; and they now bid fair to rival the *English,* in every port abroad. All the manufactures that Great-Britain could make, would be consumed in America, and in her own plantations, if put on a right footing; for which a greater profit in return would be made, than she will ever see again for woollen sent to any part of Europe.

But tho' it be allow'd, that liberty may be enjoy'd in a comfortable measure, where *prohibitions* are laid on the trade of a kingdom or province; yet if *taxes* are laid on either, *without* consent, they cannot be said to be free. This barrier of liberty being once broken down, all is lost. If a shilling in the pound may be taken from me against my will, why may not twenty shillings; and if so, why not my liberty or my life? Merchants were always *particularly* favor'd by the common law—"All merchants, except enemies, may safely come into *England,* with their goods and merchandize"—2 Inst. 28.—And why not as well to the *plantations?* Are they not entitled to all the British privileges? No. they must be confined in their imports and exports to the good of the metropolis. Very well, we have submitted to this. The act of navigation is a good act, so are all that exclude foreign manufactures from the plantations, and every honest man will readily subscribe to them. Moreover, "Merchant strangers, are also to come into the realm and depart at pleasure; and they are to be friendly entertained." 2 Ri. C. 1. But to promote the manufactures of *England,* 'tis tho't best to shut up the *colonies* in a manner from all the world. Right as to Europe: But for God's sake, must we have no trade with other colonies? In some cases the trade betwen *British* colony and colony is prohibited, as in wool, &c. Granting all this to be right, is it not enough? No. duties and taxes must be paid without any

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consent or *representation* in parliament. The common law, that inestimable privilege of a jury, is also taken away in all trials in the colonies, relating to the revenue, if the informers have a mind to go the admiralty; as they ever have done, and ever will do, for very obvious reasons. "It has ever been boasted, says Mr. Dummer in his defence of the charters, as the peculiar privilege of an Englishman, and the security of his property, to be tryed by his country, and the laws of the land: Whereas this admiralty method deprives him of both, as it puts his estate in the disposal of a single person, and makes the civil law the rule of judgment; which tho' it may not properly be called foreign being the law of nations, yet 'tis what he has not consented to himself, nor his representative for him. A jurisdiction therefore so founded, ought not to extend beyond what *necessity* requires"—"If some bounds are not set to the jurisdiction of the admiralty, beyond which it shall not pass, it may in time, like the element to which it ought to be confin'd, grow outrageous, and overflow the banks of all the other courts of justice." I believe it has never been doubted by one sound, common lawyer of England, whether a court of admiralty ever answer'd many good ends; "the court of King's bench has a power to restrain the court of admiralty in England; and the reasons for such restraining power are as strong in New England as in Great-Britain," and in some respects more so; Yet Mr. Dummer mentions, a clamour that was raised at home by a judge of the admiralty for New England, who complain'd "that the common law courts by granting prohibitions, weaken, and in a manner suppress the authority of this court, and all the good ends for which it was constituted." Thus we see, that the court of admiralty long ago discover'd, no very friendly disposition towards the common law courts here; and the records of the house of Representatives afford us a notable instance of one, who was expelled the house, of which he had been an unworthy member, for the abusive misrepresentations of the province, by him secretly made.

Trade and traffick, says Lord Coke, "is the livelihood of a merchant, the life of the commonwealth, wherein the King and every subject hath interest; for the merchant is the good Bailiff of the realm, to export and vent the native commodities of the realm, and to import and bring in, the necessary commodities for the defence and benefit of the Realm—2 Inst. 28. reading on Magna Charta. C. 15—And are not the merchants of British America entitled to a livelihood also? Are they not British subjects? Are not an infinity of commodities carried from hence for the *benefit of the realm,* for which in return come an infinity of *trifles,* which we could do without? Manufactures we must go into if our trade is cut off; our country is too cold to go naked in, and we shall soon be unable to make returns to England even for necessaries.

"When any law or custom of parliament is broken, and the crown possessed of a precedent, how difficult a thing is it to restore the subject again to his former freedom and safety?" 2. Inst. *on the confirmation of the great charter*—which provides in these words: "And for so much as divers people of our realm, are in fear, that the aids and talks which they have given to us before time, towards our wars, and other business of their own grant and good will (howsoever they were made) might *turn to a bondage* to them and their heirs, because they might be at another time found in the rolls, and likewise for the prices taken throughout the realm by our ministers; We have granted for us and our heirs, that we shall not draw such aids, talks nor prices *into a custom,* for any thing that hath been done heretofore, be it by roll, or any other precedent that may be founden."

By the first chapter of this act, the great charter is declared to be the common law. I would ask, whether we have not reason to fear, that the great aids, freely given by these provinces in the late war, will in like manner turn *to our bondage,* if they are to be kept on and *increased* during a *peace,* for the maintenance of a *standing army* here?—If tis said those aids were given for *our own* immediate defence, and that England spent millions in the same cause; I answer: The names of his present Majesty, and his royal Grand-father, will be ever dear to every loyal British American, for the protection they afforded us, and the salvation, under God, effected by their arms; but with regard to our fellow-subjects of Britain, we never were a whit behind hand with them. The New England Colonies in particular, were not only settled without the least expence to the mother country, but they have all along defended themselves against the frequent incursions of the most inhuman Salvages, perhaps on the face of the whole earth, at *their own cost:* Those more than brutal *men,* spirited and directed by the most inveterate, as well as most powerful enemy of Great Britain, have been constantly annoying our infant settlements for more than a century; spreading terror and desolation and sometimes depopulating whole villages in a night: yet amidst the fatigues of labor, and the horrors of

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war and bloodshed, Heaven vouchsaf'd its smiles. Behold, an extensive territory, settled, defended, and secured to his Majesty, I repeat it, *without the least expence to the mother country,* till within twenty years past! —When *Louisbourg* was reduced to his late Majesty, by the valor of his *New-England subjects,* the parliament, it must be own'd, saw meet to refund *part* of the charges: And every one knows the importance of *Louisbourg,* in the consultations of *Aix la Chapple;* but for the loss of our young men, the riches and strength of a country, not indeed slain by the enemy, but overborn by the uncommon hardships of the siege, and their confinement in garrison afterwards, there could be no recompence made.—In the late war, the *northern colonies* not only rais'd their full quota of men, but they went even beyond their ability: they are still deeply in debt, notwithstanding the parliamentary grants, annually made them, *in part* of their expences, in the common, *national, cause:* Had it not been for those grants, they had all been bankrupt long ago; while the *sugar colonies,* have born little or no share in it: They indeed sent a company or two of *Negroes* and *Molattoes,* if this be worth mentioning, to the sieges of Gaudaloupe, Martineco and the Havanna: I do not recollect any thing else that they have done; while the flower of *our* youth were annually pressed by ten thousands into the service, and there treated but little better, as we have been told, than hewers of wood and drawers of water. Provincial acts for impressing were obtained, only by letters of requisition from a secretary of state to a Governor; requiring him to use his influence to raise men; and sometimes, more than were asked for or wanted, were pressed, to give a figure to the Governor, and shew his influence; a remarkable instance of which might be mentioned. I would further observe, that Great-Britain was as immediately interested in the late war in America, as the colonies were. Was she not threatned with an invasion at the same time we were? Has she not an immense trade to the colonies? The British writers say, more than half her profitable trade is to *America:* All the profits of our trade center there, and is little enough to pay for the goods we import. A prodigious revenue arises to the Crown on American exports to Great-Britain, which in general is not murmured at: No manufacture of Europe besides British, can be lawfully bro't here; and no honest man desires they ever should, if the laws were put in execution upon all. With regard to a few Dutch imports that have made such a noise, the truth is, very little has been or could be run, before the apparatus of guardships; for the officers of some ports did their duty, while others may have made a monopoly of smuggling, for a few of their friends, who probably paid them large contributions; for it has been observed, that a very small office in the customs in America has raised a man a fortune sooner than a Government. The truth is, the acts of trade have been too often evaded; but by whom? Not by the American merchants in general, but by some former custom-house officers, their friends and partizans. I name no man, not being about to turn informer: But it has been a notorious grievance, that when the King himself cannot dispense with an act of parliament, there have been custom-house officers who have practiced it for years together, in favor of those towards whom they were graciously disposed. But to return to the subject of taxation: I find that

"the lords and commons cannot be charged with anything for the defence of the realm, for the safe-guard of the sea, &c. unless by their *will* in parliament."

Ld. Coke, on Magna Charta, Cap. 30.

"Impositions neither in time of war, or other the greatest necessity or occasion, that may be, much less in the time of peace, neither upon foreign or inland commodities, of what nature soever, be they never so superfluous or unnecessary, neither upon merchants, strangers, nor denizens, may be laid by the King's absolute power, without assent of parliament, be it never for so short a time."

Viner Prerogative of the King.
Ea. 1. cites 2 Molloy. 320. Cap. 12 sec. 1.

"In the reign of Edward 3, the black Prince of Wales having *Aquitain* granted to him, did lay an imposition of suage or socage a *soco,* upon his subjects of that dukedom, viz. a shilling for every fire, called hearth silver, which was of so great discontentment and odious to them, that it made them revolt. And nothing since this time has been imposed by pretext of any prerogative, upon merchandizes, imported into or exported out of this realm, until Queen Mary's time." 2 Inst. 61.

Nor has any thing of that kind taken place since the revolution. King Charles 1. his ship-money every one has heard of.

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It may be said that these authorities will not serve the colonists, because the duties laid on them are by parliament. I acknowledge the difference of fact; but cannot see the great difference in equity, while the colonists are not represented in the house of commons: And therefore with all humble deference I apprehend, that 'till the colonists are so represented, the spirit of all these authorities will argue strongly in their favour. When the parliament shall think fit to allow the colonists a representation in the house of commons, the equity of their taxing the colonies, will be as clear as their power is at present of doing it without, if they please. When Mr. Dummer wrote his defence of the charters, there was a talk of taking them away, by act of parliament. This defence is dedicated to the right honourable the Ld. Carteret, then one of this Majesty's principal secretaries of state, since Earl of Granville. His third proposition is, that "it is not for the interest of the crown to resume the charters, if forfeited." This he proves; as also that it would be more for the interest of Great Britain to enlarge rather than diminish, the privilege of all the colonists. His last proposition is, that it "seems inconsistent with justice to disfranchise the charter colonies by an act of parliament."

"It seems therefore, says he, a severity without a precedent, that a people, who have the misfortune of being a thousand leagues distant from their sovereign, a misfortune great enough in itself, should, unsummoned, unheard, in one day, be deprived of their valuable privileges, which they and their fathers have enjoyed for near a hundred years." 'Tis true, as he observes, "the legislative power is absolute and unaccountable, and King, lords and commons, may do what they please; but the question here is not about *power,* but *right*" (or rather equity) "and shall not the supreme judicature of all the nation do right?" "One may say, that what the parliament cannot do justly, they cannot do at all. *In maximis minima est licentia.* The higher the power is, the greater caution is to be used in the execution of it; because the sufferer is helpless and without resort." I never heard that this reasoning gave any offence. Why should it? Is it not exactly agreable to the decisions of parliament and the determinations of the highest executive courts? But if it was thought hard that charter privileges should be taken away by act of parliament, is it not much harder to be in part, or in whole, disfranchised of rights, that have been always tho't inherent to a British subject, namely, to be free from all taxes, but what he consents to in person, or by his representative? This right, if it could be traced no higher than Magna Charta, is part of the common law, part of a British subjects birthright, and as inherent and perpetual, as the duty of allegiance; both which have been bro't to these colonies, and have been hitherto held sacred and inviolable, and I hope and trust ever will. 'Tis humbly conceived, that the British colonists (except only the conquered, if any) are, by Magna Charta, as well entitled to have a voice in their taxes, as the subjects within the realm. Are we not as really deprived of that right, by the parliament assessing us before we are represented in the house of commons, as if the King should do it by his prerogative? Can it be said with any colour of truth or justice, that we are represented in parliament?

As to the colonists being represented by the provincial agents, I know of no power ever given them but to appear before his Majesty, and his ministry. Sometimes they have been directed to petition the parliament: But they none of them have, and I hope never will have, a power given them, by the colonists, to act as representatives, and to consent to taxes; and if they should make any concessions to the ministry, especially without order, the provinces could not by that be considered as represented in parliament.

Hibernia habet Parliamenta et faciunt leges et nostra statuta non ligant eos quia non mittant milites ad Parliamentum, sed personae eorum sunt subjecti Regis, sicut inhabitantes Calinae Gasconiae et Guienae.

12 Rep. 111. cites R. 3. 12.—

"Ireland hath parliaments, and makes laws, and our statutes do not bind them, *because they send no Knights to parliament;* but their persons are subjects, of the King, as the inhabitants of Guiene, Gascony, &c."

Yet, if specially named, or by general words included as within any of the King's dominions, Ireland, says Ld. Coke, might be bound. 4 Inst. 351.

From all which, it seems plain, that the reason why Ireland and the plantations are not bound, unless named by an Act of Parliament, is, because they are *not represented* in the British parliament. Yet, in special cases, the British parliament has an undoubted right, as well as power, to bind both by their acts. But whether this can be extended to an indefinite taxation of both, is the greater question. I conceive the spirit of the British constitution must make an exception of all taxes, until it is tho't fit to unite a dominion to the realm. Such taxation must be considered either as uniting the dominions to the realm, or disfranchising

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them. If they are united, they will be intitled to a representation, as well as Wales; if they are so taxed without a union, or representation, they are so far disfranchised.

I don't find anything that looks like a duty on the colonies before the 25th of C. 2. c. 7. imposing a duty on enumerated commodities. The liberty of the subject was little attended to in that reign. If the nation could not fully assert their rights till the revolution, the colonies could not expect to be heard. I look on this act rather as a precedent of power, than of right and equity; if 'tis such, it will not affect my argument. The act appointing a tax on all mariners, of a certain sum per month, to be deducted out of their wages, is not to be compared with this. Mariners are not inhabitants of any part of the dominions: The sea is their element, till they are decrepit, and then the hospital is open for all mariners who are British subjects without exception. The general post-office established thro' the dominions, is for the convenience of trade and commerce: It is not laying any burthen upon it; for besides that it is upon the whole cheaper to correspond in this way than any other, every one is at liberty to send his own letters by a friend. The act of the 6th of his late Majesty, tho' it imposes a *duty* in terms, has been said to be designed for a *prohibition;* which is probable from the sums imposed; and 'tis pity it had not been so expressed, as there is not the least doubt of the just and equitable right of the parliament to lay prohibitions thro' the dominions, when they think the good of the whole requires it. But as has been said, there is an infinite difference between that and the exercise of unlimited power of taxation, over the dominions, without allowing them a representation:—It is said that the duties imposed by the new act will amount to a prohibition: Time only can ascertain this. The utility of this act is so fully examined in the appendix that I shall add nothing on that head here. It may be said that the colonies ought to bear their proportion of the national burdens: 'Tis just they should, and I think I have proved they have always done it freely and chearfully, and I know no reason to doubt but that they ever will.

Sometimes we have been considered only as the corporations in England: And it may be urged that it is no harder upon us to be taxed by parliament for the general cause than for them, who besides are at the expence of their corporate subordinate government.* I answer. 1. Those corporations are *represented* in parliament. 2. The colonies are and have been at great expence in raising men, building forts, and supporting the King's civil government here. Now I read of no governors and other officers of his Majesty's nomination, that the city of London taxes its inhabitants to support; I know of no forts and garrisons that the city of London has lately built at its own expence, or of any annual levies that they have raised for the King's service and the common cause. These are things very fitting and proper to be done by a subordinate dominion, and tis their duty to do all they are able; but it seems but equal they should be allowed to assess the charges of it themselves. The rules of equity and the principles of the constitution seem to require this. Those who judge of the reciprocal rights that subsist between a supreme and subordinate state or dominion, by no higher rules than are applied to a corporation of button-makers, will never have a very comprehensive view of them. Yet sorry am I to say it, many elaborate writers on the *administration* of the *colonies,* seem to me never to rise higher in their notions, than what might be expected from a secretary to one of the *quorum.* If I should be ranked among this number, I shall have this consolation, that I have fallen into what is called very good company, and among some who have seen very high life below stairs. I agree with the Administrator, that of whatever revenues raised in the colonies, if they must be raised without our consent, "*the first and special appropriation of them ought to be to the paying the Governors, and all the other Crown officers;*" for it would be hard for the Colonists to be obliged to pay them after this. It was on this principle that at the last assembly of this province, I moved to stop every grant to the officers of the crown; more especially as I know some who have built very much upon the fine salaries they shall receive from the plantation branch of the revenue. Nor can I think it "injustice to the frame of human nature,"† to suppose, if I did not know it, that with similar views several officers of the Crown in some of the colonies have been pushing for such an act for many years. They have obtained their wish, and much good it will do them: But I would not give much for all that will center neat in the exchequer, after deducting the costs attending the execution of it, and the appropriations to the several officers proposed by the Administrator. What will be the unavoidable consequence of all this, suppose another war should happen, and it should be necessary to employ as many provincials in America as in the last? Would it be

*See Administration of the Colonies.

†Adm. p. 57.

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possible for the colonies, after being burthened in their trade, perhaps after it is ruined, to raise men? Is it probable that they would have spirit enough to exert themselves? If 'tis said the French will never try for America, or if they should, regular troops are only to be employed, I grant our regular troops are the best in the world, and that the experience of the present officers shews that they are capable of every species of American service; yet we should guard against the worst. If another tryal for Canada should take place, which from the known temper of France, we may judge she will bring on the first fair opportunity, it might require 30 or 40,000 regulars to secure his Majesty's just rights. If it should be said, that other American duties must then be levied, besides the impossibility of our being able to pay them, the danger recurs of a large standing army so remote from home. Whereas a good provincial militia, with such occasional succours from the mother country, as exigencies may require, never was, and never will be attended with hazard. The experience of past times will show, that an army of 20 or 30,000 veterans, half 3000 miles from *Rome,* were very apt to proclaim *Cesars.* The first of the name, the assassin of his country owed his false glory, to stealing the affections of an army from the commonwealth. I hope these hints will not be taken amiss; they seem to occur from the nature of the subject I am upon: They are delivered in pure affection to my King and country, and amount to no reflection on any man. The best army, and the best men, we may hereafter have, may be led into temptation; all I think is, that a prevention of evil is much easier than a deliverance from it.

The sum of my argument is, That civil government is of God: That the administrators of it were originally the whole people: That they might have devolved it on whom they pleased: That this devolution is fiduciary, for the good of the whole; That by the British constitution, this devolution is on the King, lords and commons, the supreme, sacred and uncontroulable legislative power, not only in the realm, but thro' the dominions: That by the abdication, the original compact was broken to pieces: That by the revolution, it was renewed, and more firmly established, and the rights and liberties of the subject in all parts of the dominions, more fully explained and confirmed: That in consequence of this establishment, and the acts of succession and union his Majesty GEORGE III. is rightful king and sovereign, and with his parliament, the supreme legislative of Great Britain; France and Ireland, and the dominions thereto belonging: That this constitution is the most free one, and by far the best, now existing on earth: That by this constitution, every man in the dominion is a free man: That no parts of his Majesty's dominions can be taxed without their consent: That every part has a right to be represented in the supreme or some subordinate legislature: That the refusal of this, would seem to be a contradiction in practice to the theory of the constitution: That the colonies are subordinate dominions, and are now in such a state, as to make it best for the good of the whole, that they should not only be continued in the enjoyment of subordinate legislation, but be also represented in some proportion to their number and estates, in the grand legislature of the nation: That this would firmly unite all parts of the British empire, in the greatest peace and prosperity; and render it invulnerable and perpetual.

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The Act Repealing the Stamp Act

March 18, 1766

The Declaratory Act

March 18, 1766

American opposition to the Stamp Act, particularly the boycotts of taxed goods in which merchants and common colonials engaged with enthusiasm, caused a significant decline in British-colonial trade. By 1766, Parliament decided that the taxes were costing more in reduced trade than they were bringing in through taxes, and the Stamp Act was repealed. However, Parliament at the same time passed what it called the Declaratory Act, by which it declared its absolute right to legislate for the colonies as it saw fit. This statement, and Parliament's decision to act in accordance with it, would spark the American Revolution.

The Act Repealing the Stamp Act

Whereas *an act was passed in the last session of parliament, intituled,* An act for granting and applying certain stamp duties, and other duties, in the *British* colonies and plantations in *America,* towards further defraying the expences of defending, protecting, and securing the same; and for amending such parts of the several acts of parliament relating to the trade and revenues of the said colonies and plantations, as direct the manner of determining and recovering the penalties and forfeitures therein mentioned: *and whereas the continuance of the said act would be attended with many inconveniencies, and may be productive of consequences greatly detrimental to the commercial interests of these kingdoms;* may it therefore please your most excellent Majesty, that it may be enacted; and be it enacted by the King's most excellent Majesty, by and with the advice and consent of the lords spiritual and temporal, and commons, in this present parliament assembled, and by the authority of the same, that from and after the first day of *May,* one thousand seven hundred and sixty six, the above-mentioned act, and the several matters and things therein contained, shall be, and is and are hereby repealed and made void to all intents and purposes whatsoever.

The Declaratory Act

An act for the better securing the dependency of his Majesty's dominions in America *upon the crown and parliament of* Great Britain.

Whereas *several of the houses of representatives in his Majesty's colonies and plantations in* America, *have of late, against law, claimed to themselves, or to the general assemblies of the same, the sole and exclusive right of imposing duties and taxes upon his Majesty's subjects in the said colonies and plantations; and have, in pursuance of such claim, passed certain votes, resolutions, and orders, derogatory to the legislative authority of parliament, and inconsistent with the dependency of the said colonies and plantations upon the crown of* Great Britain: may it therefore please your most excellent Majesty, that it may be declared; and be it declared by the King's most excellent majesty, by and with the advice and consent of the lords spiritual and temporal, and commons, in this present parliament assembled, and by the authority of the same, That the said colonies and plantations in *America* have been, are, and of right ought to be, subordinate unto, and dependent upon the imperial crown and parliament of *Great Britain;* and that the King's majesty, by and with the advice and consent of the lords spiritual and temporal, and commons of *Great Britain,* in parliament assembled, had, hath, and of right ought to have, full power and authority to make laws and statutes of sufficient force and validity to bind the colonies and people of

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America, subjects of the crown of *Great Britain,* in all cases whatsoever.

II. And be it further declared and enacted by the authority aforesaid, That all resolutions, votes, orders, and proceedings, in any of the said colonies or plantations, whereby the power and authority of the parliament of *Great Britain,* to make laws and statutes as aforesaid, is denied, or drawn into question, are, and are hereby declared to be, utterly null and void to all intents and purposes whatsoever.

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